

Onalaska Education Association

Agreement

September 1, 2022

Through

August 31, 2025

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Contractual Labor Agreement
between Onalaska Education Association
and Onalaska School District
2019 - 2022

1. DEFINITIONS AND ADMINISTRATION

1.1 Preamble

It is the intent of the Onalaska Education Association and the Board of Directors by this agreement to set forth and record herein, the agreement between the parties on those matters pertaining to wages, hours, working conditions, and conditions of employment for teaching personnel included in the Association.

Revised: 06/15/06

1.2 Recognition

During the effective dates of this agreement, the Onalaska School District, hereinafter referred to as "Employer," "Board," or "District," recognizes the Onalaska Education Association, hereinafter referred to as the "Association," as the exclusive bargaining representative for all professional certificated non-supervisory personnel under contract to the District or under District-approved leave, whether or not such Employee actually becomes a member of the association. Members of the association will be referred to as "Employees" in this agreement.

Revised: 06/15/06

1.3 Conformity to Law

A. This agreement shall be governed and construed according to the constitution and laws of the State of Washington and Federal Law. If any provision of this agreement, or any application of this agreement to any Employee or groups of Employees covered hereby shall be found contrary to law, such provision or application shall have effect only to the extent permitted by law, and all other provisions or application of the agreement shall continue in full force and effect.

Revised: 06/03/13

B. If any provision(s) of this agreement are so held to be contrary to law, the parties shall commence negotiations only on said provision(s) as soon thereafter as is reasonably possible.

1.4 Exclusivity

The rights granted herein to the Association shall not be granted or extended to any competing labor organization for the duration of this agreement.

1.5 Sub-contracting

The District shall not sub-contract positions traditionally or previously held by Employees except in cases where there exists a demonstrable lack of qualified applicants or an urgent program need is present.

Adopted: 06/19/06

1.6 Status of the Agreement

Throughout this agreement certain rights and functions are accorded and ascribed to the Association that are separate from the rights and functions provided for in the rules, regulations, policies, resolutions and practices of the Onalaska School District. These rights and functions are afforded to the Association as the legal representative for all Employees covered under this agreement. This agreement supersedes all previous agreements and policies of the Board and the Onalaska Education Association on matters of negotiation between the Board and the Association. All provisions shall continue in effect until a successor agreement is negotiated and approved.

Revised: 06/15/06

1.7 Ratification and Mutual Consent

This agreement shall be ratified by the Association and then by the Board and signed by authorized representatives thereof and may be amended or modified during its term only with mutual consent of the parties. It shall become effective in accordance with the Duration clause herein.

1.8 Distribution of Contract

The Association and the District will meet jointly to approve the draft of the contract. Within 45 days following ratification of the agreement, the contract will be printed and assembled at District expense and given to the Association for distribution to all Employees. There will be two signed copies of the final agreement for the purpose of records. One shall be retained by the District and one retained by the Association.

2. AGREEMENT RIGHTS

2.1 No Strike Clause

During the life of this agreement the Association will not cause or encourage its members to take part in any strike or work stoppage against the Onalaska School District.

Revised: 06/19/06

2.2 Management's Rights

A. Nothing contained herein shall be considered to deny or restrict the Board or the superintendent of their rights, responsibilities and authority under the laws of Washington State, State Board of Education Regulations, Onalaska School District Board policies, or any other laws or regulations. Except as specifically stated in this agreement, all the rights, powers, and authority the Board had prior to this agreement are retained by the Board whether or not such rights have been exercised by the Board in the past.

B. It is expressly agreed that all rights which ordinarily vest in, and have been exercised by the Board, except those which are clearly and expressly relinquished herein by the Board, shall continue to vest exclusively in and be exercised exclusively by the Board without prior negotiations with the Association either as to the taking of action under such rights or with respect to the consequence of such action during the term of this agreement.

C. The matters contained in the agreement are not subject to further negotiations between the parties during the term of this agreement except as specifically provided for in this agreement.

D. It shall also be the right of the Board to hire all Employees and subject to the provision of law to determine their qualifications and conditions for their continued employment, their placement or their dismissal, suspension, layoff or demotion and to promote and transfer all such Employees, in accordance with this agreement.

2.3 Employee Rights and Responsibilities

A. The Board and Association hereby agree that every Employee as herein defined shall have the right freely to or not to organize, join and support the Association, except as provided for in this section on "Dues, Deductions and Representation fees, for the purpose of engaging in collective bargaining or negotiations." The Board and Association further agree that they will not directly or indirectly discourage or deprive or coerce any Employee in the enjoyment of any rights conferred by law, that they will not discriminate against any Employee with respect to hours, wages, or any terms or conditions of employment by reason of his/her membership or non-membership in the Association; his/her participation in any activities of the Association, or collective negotiations with the Board and/or Association of his/her institution of any grievance, complaint or proceeding under agreement.

Revised: 06/03/13

B. The Association and the Onalaska School District affirm their adherence to the principles of free choice and agree that they shall not discriminate against any Employee covered by this agreement because of age, race, religion, sex, and national origin, the presence of any mental or physical handicap or gender orientation by reason of an individual's membership or non-membership status in the Association. All references to Employees in this agreement designate both sexes. Nothing in this agreement shall deny any Employee due process.

Revised: 06/03/06

C. Membership in the Association shall not be denied to any Employee because of race, creed, religion, color, national origin, age, sex, marital status or the presence of any sensory, mental, physical handicap or gender orientation.

Revised: 06/03/13

D. Academic freedom consists of the right to teach and learn what is relevant without improper restraints and within the framework established by law and District policy. Activities or efforts to censor or interfere with an Employee's performance will be addressed through bargaining processes described below. Academic freedom includes the right to support or oppose political causes and issues outside of the contracted workday and away from the school or work site.

(1). The protection of academic freedom will be available to all Employees through the provisions of this section and within the scope of WAC 180-44-010.

(2). The District shall use no mechanical or electronic device to monitor, record or evaluate an Employee's teaching performance in any classroom except by mutual agreement between Employee and the building administrator. This does not prohibit routine monitoring of computers used by Employees or checking of Employee computers if that Employee is suspected of wrongdoing.

(3). Employees shall be responsible for the evaluation of each student's educational growth and development and for making quarterly reports to parents or guardians and to the designated administrator. Other progress reports may be done as the Employee believes will be helpful to parents and students. The District has the right to have progress reports done at designated intervals no more than once per week for individual students.

(4). The District and the Association shall appoint members to the Instructional Materials (Curriculum) Committee. The Association and the Superintendent shall appoint an equal number of committee members.

Adopted: 06/19/06

E. Material created for ordinary teaching use in the classroom and in department programs, such as syllabi, instructional units, assignments, and assessments shall remain the property of the Employee author, but the District shall be permitted to use such material for internal instructional, educational, and administrative purposes, including satisfying requests of accreditation agencies for faculty-authored syllabi and course descriptions. In an agreement transferring copyright for such works to a publisher, Employee authors are urged to seek to provide rights for the District to use such works for internal instructional, educational, and administrative purposes. Funds received by the Employee from the sale of intellectual property owned by the Employee author or inventor shall be allocated and expended as determined solely by the Employee author or inventor.

Adopted: 06/15/06

2.4 Environmental Issues

When an Employee in good faith believes that he/she is being required to work where a clear and present danger exists, he/she will so notify his/her supervisor. The supervisor will immediately investigate the situation. After the investigation, if the Employee or Association still believes unsafe conditions exist, the Association or Employee may file a grievance alleging a violation of this section.

Adopted: 06/15/06

2.5 Association Rights and Privileges Clause

A. The Association and its members shall have the privilege of using school building facilities for meetings outside of school hours on the same basis as a civic organization in the Onalaska School District, as established by Board policy.

B. The use of business machines of the Onalaska School District, excluding those in the superintendent's office, is allowed at reasonable times when such equipment is not otherwise in use. The Association shall furnish all paper and supplies related to such use and shall be responsible for any damage or maintenance charges attributable to its use of the equipment.

Revised: 06/15/06

C. The Association shall have the right to post notices of activities and matters of Association concern on the bulletin boards provided in the faculty lounges of each building.

Revised: 06/15/06

D. The Association shall be granted the privilege of using the teacher mailboxes for communications with the Association members. Use of district e-mail will be allowed for Association business.

Revised: 06/15/06

E. The District and Association agree not to hold negotiations during teaching hours unless mutually agreed upon by both parties. Association representatives during work hours, without loss of time or pay, are allowed to represent Employees and investigate and present grievances to the District when mutually agreed upon meetings are scheduled during the workday.

Revised: 08/23/2010

F. The Board shall furnish at its expense to the Association one copy of information concerning the annual financial reports, audit, preliminary and final budget, agenda and minutes of all Board meetings.

Revised: 06/15/06

2.6 Just Cause (Due Process)

A. No Employee shall be disciplined without just and sufficient cause. Such discipline shall be in private.

B. The Onalaska School District agrees to follow a policy of progressive discipline which shall begin with a verbal warning, progress to a written reprimand, then to suspension with pay and, when required by the circumstances, include discharge or non-renewal as final actions. These enumerated forms of discipline, failure to adhere to the evaluation criteria, as well as procedural errors in evaluation of an Employee's performance, shall be subject to the grievance procedure.

C. Just cause shall be extended to all Employees within the Association regardless of employment status or assignment. Whenever an Employee is questioned by a supervisor for the purpose of seeking information that may be used as a basis for discipline, the Employee shall be advised that he/she is entitled to request and to have a representative of the Association or legal representative present at any meeting relating to such discipline.

Revised: 06/15/06

D. During the investigation, the District will attempt to obtain substantial evidence as to the validity of allegations against the employee. The District's investigation will be conducted fairly and objectively. All information forming the basis for any discipline shall be made available in writing to the Employee and, upon approval and/or request of the Employee, to the Association.

08/23/2010

E. No disciplinary action more than one (1) year old shall be applied toward future disciplinary actions unless the same offense was committed during the one (1) year period of time, except in cases where the offense was excessive force, physical abuse, or sexual abuse.

Revised: 06/03/13

F. An Employee who has been disciplined and thereafter goes for one (1) year without further discipline shall have any documentation of the problem removed from the Employee's personnel file after two (2) years, except in cases where the offense was excessive force, physical abuse, or sexual abuse. This only takes into effect discipline occurring after the start of the 2016-2017 school year.

Revised: 06/20/16

G. Any complaint made against an Employee or person, for whom the Employee is administratively responsible, by any parent, student, or other person shall be called to the attention of the Employee promptly. Any complaint not called to the attention of the Employee may not be used as the basis for any disciplinary action against the Employee nor may it be written as any part of an evaluation.

Revised: 08/23/2010

H. When the District investigates an allegation of misconduct by an Employee, and the charge is found to be without basis all documentation shall be removed from the Employee's file and a letter acknowledging that the charge has been dropped will be given to the employee. The Employee and the Association shall be given a copy of all documentation related to the incident.

Revised: 08/23/2010

I. The degree of discipline administered by the District in a particular case will be reasonably related to a) the seriousness of the Employee's proven offense, and b) the record of the Employee in his/her service with the District. Any formal discipline shall be placed in the Employee's personnel file, including the reason for such action. Such action will be timely.

Adopted: 08/23/2010

2.7 Orientation of Staff

At the first annual meeting of all certificated Employees prior to the opening of school for students, the Superintendent shall provide time for the President of the Association to address the certificated Employees. The Superintendent shall include information of this meeting in his/her notification to Employees.

Revised: 06/15/06

2.8 Personnel Files

A. Employees or former Employees shall, upon request, have the right to inspect all contents of their personnel files kept within the Onalaska School District Superintendent's office. Upon request a copy of any documents contained therein, with the exception of those statements declared confidential by law, shall be afforded the Employee at the prevailing cost as determined by the Board. The Employee will be permitted to inspect the contents of his/her file in the presence of someone employed in the office during regular office hours. No secret personnel file shall be kept anywhere in the Onalaska School District.

Revised: 06/15/06

B. The Employee may request that an observer accompany him/her.

Revised: 06/15/06

C. Any derogatory material not shown and/or mailed to an Employee within ten (10) days after receipt or composition shall not be allowed as evidence in any grievance or in any disciplinary action against such Employee and may not be placed in the personnel file of the Employee. This does not preclude inclusion in the superintendent's working files.

Revised: 06/19/06

D. No evaluation, correspondence, or other material making derogatory reference to a Employee's competence, character or manner, shall be kept or placed in the personnel file without the Employee's knowledge and, further, the Employee has the right to attach his/her own written comments.

E. Upon request by the Employee, the Superintendent or his/her official designee shall sign an inventory sheet to verify contents of the personnel file at the time of inspection by said Employee.

2.9 Computer Files

A. All Association members will sign and comply with Board Policy Concerning the Use and Implementation of Technology at Onalaska School District.

Revised: 08/23/2010

B. Employees shall have exclusive right and responsibility to determine posted grades and evaluation results of students. No grade or evaluation shall be changed without the knowledge and permission of the Employee. In the event a grade is changed without the agreement of the Employee, the District will remove the Employee's name from the report card for that class or indicate in some manner that the evaluation is not the work of the Employee.

Revised: 06/03/13

C. Willful and/or repeated violation of the District's Internet Access policy with regard to inappropriate sexual and/or menacing content will result in immediate termination of the Employee through due process.

Revised: 06/03/13

3. CONTRACTS

3.1 Individual Employee's Contract

The Onalaska School District shall provide each Employee, by June 1st, a contract in compliance with Washington state law, State Board of Education regulations and this agreement. If the legislature has not passed a budget by the end of the regular session in any given year, the date will move to June 15th. (HB 2023).

Revised: 06/20/2016

3.2 Copies of Contract

Three (3) copies of a contract shall be given to the Employee each year for signature. One is to be retained by the Employee, and two (2) copies are returned to the Board for ratification. One (1) of these copies is returned to the

Employee. The remaining copy is placed in the Employee's personnel file.

3.3 Release from Contract

A. An Employee under contract shall be released from the obligations of the contract under the following conditions:

- (1). A letter of resignation must be submitted to the Superintendent's office for the following year.
- (2). A release from contract, prior to July 1, shall be granted provided a letter of resignation is submitted prior to that date.
- (3). A release from contract shall be granted after July 1 provided a satisfactory replacement can be obtained.
- (4). A release from contract shall be granted in case of illness or other personal matters that make it impossible for the Employee to continue in the Onalaska School District.

3.4 Payments

In accordance with Washington state law, all Employees shall be paid in twelve (12) monthly installments. Payroll checks shall be issued to the Employee on the last day of the month. If the last day of the month falls on Saturday or Sunday, checks will be issued on the preceding Friday. All compensation owed to a retiring Employee shall, upon request, be paid within thirty (30) days after the next regular payday. Employees resigning with Board approval prior to completion of their contracts with the Onalaska School District may request and be granted compensation owed as provided for retiring Employees.

Revised: 06/15/06

3.5 Supplemental Employee Contract

A. The Onalaska School District shall provide supplemental employment contracts to each Employee performing duties beyond the regular work day (before 8:00 a.m. and after 3:30 p.m.) that are considered paid duties by the Board as shown in this agreement under the extra-curricular activities salary schedule for high school drama and audio visual coordinator and such other non-athletic positions as may be established by the District. In addition, supplemental employment contracts will be provided to each Employee performing duties beyond the regular work year (185 days). No supplemental contract shall be subject to the continuing contract provisions of Title 28A.

Revised: 06/19/06

B. The Onalaska School District agrees to notify the Employee in writing, by June 1, except for unforeseen circumstances, of each year if the Employee will not be offered the same supplemental contract for the same activities the following year.

Revised: 06/26/2019

3.6 Teachers on Special Assignment

A. Teachers who are presented with the opportunity to expand their knowledge to positions other than classroom teacher within the District shall not be penalized for taking such opportunity. These opportunities may include but are not limited to literacy coach, math coach, and intervention specialists.

B. Members who take these opportunities shall have all the same benefits that are given to bargaining unit members within the association.

C. At the end of the opportunity, the member shall be placed back into a similar position determined by their highly effective status. If there is an open position, the Association member may choose to fill that void, if approved by the building administration.

Revised: 06/26/2019

3.7 Alternative Learning Environments

A. Onalaska School District has maintained and operated an Alternative Learning Education (ALE) program for many years. Laws and audits are forcing these programs to change and adjust frequently. Therefore, such programs will be regarded as autonomous, with its own site based decision making process and its own budget allocations of staffing and supplies. Further, the students and teacher FTE ratio will be determined by ALE regulations and instructional service support needs. Conversations should occur between the teacher(s) and the responsible administrator regarding working conditions and maximum student FTE. Said conversation can include Association assistance in setting parameters for staffing.

- B. Bargaining Unit Member in a district ALE shall have the same benefits that are given to bargaining unit members within the association.
- C. In the event a Reduction in Force becomes necessary in the ALE program, teachers in the ALE will be addressed with the language in 4.15 through 4.18 procedures and rights in positions.
- D. Teachers assigned to any ALE program must have the required endorsements and Highly Qualified Status in the content areas they are responsible for.

Adopted: 06/03/13

4. CONTRACTUAL TERMS

4.1 Salary Schedule Placement

- A. Employees are responsible to provide transcripts of educational training and records of previous experience.
- B. Employees who earn advancement on the salary schedule are given until September 25 each year to apply for and provide proof of such improvement. Preliminary filing of expectancy to meet requirements for a higher classification must be done by May 1 each year.
- C. Employees entering the system shall be given full credit for out-of-district teaching as defined for acceptance by the office of the Superintendent of Public Instruction.
- D. Contracted part-time Employee's salary and benefits will be based on his/her assigned workload as it relates to a comparable full-time workload.

Revised: 06/15/06

- E. Employee positions are to be held only by certificated Employees.

Revised: 06/19/06

- F. The District will attempt by December 1st, to tender a list to the Association and make available to each employee which shows the rank order of existing employees according to seniority. This list shall show existing employment categories within the District as well as employee's years of certificated experience in the Onalaska School District, certification, and endorsements.

Adopted: 08/23/2010

4.2 Duties Beyond Regular Work Day

- A. Duties that are required beyond the workday (before 8:00 a.m., and after 3:30 p.m.) shall be considered part of the teacher's professional duty. Building administration will work with staff on the beginning and ending times of the event as to create a consistent time frame for all staff.
Examples: IEP meetings, parent meetings, and other mutually agreed up activities with prior notice.

Revised: 06/26/2019

- B. Duties beyond the regular workday (before 8:00 a.m. and after 3:30 p.m.) that are considered paid duties by the Board are shown in this agreement under the extra-curricular **activities** salary schedule. In addition, any Employee who signs up to supervise an activity will be paid \$25.00 per activity. These school activities include scoreboard operator, dances, clock keeper, games and riding of rooters' buses to away games.
- C. Activities planned and organized by the Administration such as parent conferences and open house/curriculum night are considered an extension of the Employee's workday and Employees will be expected to attend. This requirement is limited to one open house per school year. In exchange for attendance at two evening conferences per school year, Employees will be allowed to leave after the buses have left on the Friday of the week of evening conference. If the District wants to add additional mandatory evening events, the District and the Association will negotiate conditions and/or compensation. No conferences will be required outside of contracted time. An Administrator needs to be present at all times during all conferences.

Revised: 06/20/2016

- D. Teachers new to the profession, as well as those on a plan of improvement, will be assigned a mentor teacher. Mentor teachers shall be paid a stipend of \$500 per mentee to support new teachers and those on a plan of improvement, as assigned by Administration.

Adopted: 06/20/2016

- E. Teachers responsible for WaKIDS shall be paid on a supplemental contract for three (3) additional days at per diem to work on test preparation and data input. WaKIDS teachers will use the first three days of the school year for meeting/conferencing/testing of kindergarten students. WaKIDS teachers will be allowed three (3) release days for the purpose of working on WaKIDS data collection and reporting.

Adopted: 06/26/2019

4.3 Classes Taught Before or After the Regular School Hours

- A. Classes taught before or after the regular school hours are not a condition of employment. Employees teaching those classes will be given a supplemental contract. The pay shall be equal to the Employee's true hourly per diem. A class period will not be more than 60 minutes in length.

Revised: 06/26/2019

- B. Curriculum rate is defined as .0009 x BA Step 0 on **certified** salary schedule. Curriculum rate will be paid for District approved curriculum development and summer school instruction.

Revised: 06/16/2022

4.4 Extended Contracts

Employees shall be paid at the rate of one-one hundred eighty fifth (1/185) of their annual contracted salary for each day of additional employment or equivalent thereof.

4.5 Classroom Budget

- A. Each Employee shall be allocated \$250.00 per school year for classroom expenditures without prior approval. Reimbursements or purchase orders are to be submitted to the building secretary by the last school day prior to Spring Break.

Revised: 06/03/13

- B. Classroom curriculum needed for instruction shall be ordered by the District within 10 business days once requisition is signed by the building administrator.

Adopted: 06/20/2016

4.6 In Class Work Load

- A. The Onalaska School District agrees to keep the pupil-teacher district-wide average ratio at 25 to 1 whenever it is financially feasible as determined by the superintendent.

- B. The maximum load for a class period of grades 9-12 is thirty-one (31), P.E. is thirty-five (35), students scheduled for regular attendance; (excluding band and choir) an educational assistant will be provided for one period of time per day for each class period that exceeds 31-students, 35 students in P.E. That educational assistant will be discontinued or transferred at the conclusion of five (5) school days after the class load drops below 32, 36 in P.E. Whenever the subject period creates a safety or management problem, additional educational assistant time will be considered.

Revised: 06/20/2016

- C. The maximum load for a class period of grades 6-8 is twenty-nine (29), P.E. is thirty-two (32), students scheduled for regular attendance; (excluding band and choir) an educational assistant will be provided for one period of time per day for each class period that exceeds 29 students, 32 students in P.E. That educational assistant will be discontinued or transferred at the conclusion of five (5) school days after the class load drops below 30, 33 in P.E. Whenever the subject period creates a safety or management problem, additional educational assistant time will be considered.

Revised: 06/20/2016

- D. The maximum load for grades 4-5 is twenty-five (25), P.E. is thirty (30), students scheduled for regular

attendance; (excluding band and choir) an educational assistant will be provided for one subject block of time per day for each subject block of time that exceeds 25 students, 30 students in P.E. That educational assistant will be discontinued or transferred at the conclusion of five (5) school days after the class load drops below 26, 31 in P.E. Whenever the subject period block creates a safety or management problem, additional educational assistant time will be considered.

Revised: 06/20/2016

E. The maximum load for grades K-3 is twenty-three (23), P.E. is twenty-six (26), students scheduled for regular attendance; (excluding band and choir) an educational assistant will be provided for one subject block of time per day for each subject block of time that exceeds 23 students, 26 students in P.E. That educational assistant will be discontinued or transferred at the conclusion of five (5) school days after the class load drops below 24, 27 in P.E. Whenever the subject period block creates a safety or management problem, additional educational assistant time will be considered.

Revised: 06/20/2016

F. If the District and the Employee agree, an Employee may elect to receive compensation in lieu of educational assistant time. In this case, the Employee shall be paid from the following: \$12 per student day for elementary K-5 and \$2 per student day per class period for Secondary 6-12.

Revised: 06/15/06

G. The District and the Association recognize a continuing challenge with students who have special needs. This includes, but is not limited to students with disabilities, students with medical needs, English Language Learners (ELL) students, and students with severe behavioral problems. The District/Building Administrator will take this into consideration when placing students in classrooms, in order to maximize learning and teaching. Student placement will be reviewed when requested by the Association, to ensure quality delivery of services to students.

Classroom enrollment numbers for special education; speech, occupational and physical therapy; and ELL needs will be reviewed, as requested by either party, to ensure quality delivery of services to the students involved. Factors to be considered may include, but not be limited to, state established norms, current norms in similar districts, severity of needs, and existing personnel. Bargaining unit members desiring a review of caseload limits will make their initial contact with their immediate supervisor.

When, in the judgment of a teacher, a special needs student is not being successful in his/her placement, it is the responsibility of that Employee to request a meeting with the special education teacher or special education director. If needed adjustments in the student's program cannot be made, an IEP meeting will be held within the guidelines established by statute.

All known health, learning and behavioral issues identified through appropriate District assessment will be provided to employees who have educational responsibilities for the student in a timely fashion.

Revised: 08/23/2010

H. Teachers will be consulted before being assigned to classes that require teaching two (2) different curriculums within the same time period. Anyone required to teach a combination class shall be involved in the process of selecting students for that class, and the teacher, the Administrator and Association will agree upon the maximum number of students allowed in the class. Further, every effort shall be made to prevent a teacher from having to teach a combination class two years in a row.

Revised: 06/20/2016

I. Whenever the average pupil-teacher ratio at any grade level in grades K-5 exceeds 33 to 1, an Employee will be assigned and an additional class will be created.

Revised: 06/20/2016

J. The Onalaska School District will have up to ten (10) days to provide the changes after identification of classes larger than the maximum at any time during the school year. Monetary compensation to the affected Employee will begin on the eleventh day after the Employee workload exceeds the designated number of students regardless of the District's intent to provide an educational assistant.

Revised: 06/03/13

K. Whenever a class period size in grades 6-12 is determined by the Onalaska School District to warrant the addition of another section, the Onalaska School District will request that an available Employee teach during

his/her planning period. If the Employee agrees, an additional class or section will be created. The supplemental contract will be in the amount equal to the Employee's regular salary divided by 185 days divided by 7 per additional class period.

Revised: 06/15/06

L. Whenever possible, teachers shall be notified of the enrollment of new students a minimum of two days prior to each new student's first day of attendance. In addition, teachers shall be advised of the nature and extent, if any, of each new student's physical and/or learning disability as such information becomes available.

Adopted: 08/23/2010

4.7 Professional Work Load

A. Special education certificated Employees: Maximum caseload of 29 students with IEPs, excluding students on 504 plan. For Life Skills, the maximum caseload will be **18** students with IEP's. When the caseload exceeds 29 students, the District will provide an additional **\$50 in 2022-2023, \$75 in 2023-2024, and \$100 in 2024-2025** per student per month. When the caseload reaches 40 students per teacher, an additional para educator shall be hired. For Life Skills, the addition of a para educator will be determined by the student's IEP. An additional teacher will be hired when the caseload reaches 45 IEP students.

Revised: 06/16/2022

B. Counselors: Maximum caseload of 500 students. If on the first day of any month, the caseload is exceeded, the district will provide the counselor with one additional day's pay plus an additional one day's pay per 100 students over 500.

Revised: 8/23/2010

4.8 Student Discipline

A. The Administration will invite building staff and parents to review student disciplinary policies annually. The District will make available training, based on current research on de-escalation techniques, problem solving, mediation, and other forms of non-coercive behavior modification at least once every two years (if available) and will get all new Employees to such training within one year of hiring. Each building will establish a system of support and early intervention for staff in meeting the needs of at-risk students.

Revised: 06/20/2016

B. Students who substantially disrupt the classroom environment, in violation of the building behavior management plan, may be excluded for all or any balance of the school day or until the Principal (or designee) and the Employee have conferred and agreed that the student may return to class. The Employee must have taken corrective action first.

Revised: 06/15/06

4.9 Classroom Visitation

To provide patrons of the District the opportunity to visit classrooms with the least interruption to the teaching process, the following guidelines are set forth: All visitors to a school and/or classroom shall obtain the approval of the principal. If the visit is to a classroom, the time will be arranged after the principal has conferred with the Employee and/or specialist. The Employee and/or specialist shall determine the length and frequency of the visit. Visitations may be discontinued at any time at the request of the visitor, principal, Employee and/or specialist.

Revised: 06/15/06

4.10 Perpetual Calendar

- A. ***The first day of school for students will be the day after Labor Day.***
- B. State-wide Teacher In-Service day in October will be a non-student day.
- C. Holidays observed as provided by law.
- D. If Veteran's Day falls on a Thursday, there will be no school on the following day (Friday).

Revised: 6/3/2013
- E.. The day before Thanksgiving, and Spring Break, staff and students will follow the early release schedule. Staff may leave once the buses have departed.
- F. At the end of each midterm, students will be in attendance and will follow the early release schedule to allow teachers to prepare report cards. Fourth quarter report card preparation shall be the last Wednesday prior to the last day of school.

Revised: 6/20/2016
- G. Mid-Winter break shall be the Thursday and Friday of the first week in March.
- H. Each Wednesday, except the 1st Wednesday of the school year, students will follow the early release schedule to allow for teacher collaboration.

Revised: 06/20/2016
- I. ***Winter break will be two weeks in length and the start and end date of Winter Break will be determined by the Association and the District Office***

Revised: 06/20/2022
- J. Spring Vacation will be the first full week in April.

06/20/2016
- K. Lost school days will be made up at the end of the school year, or at other times mutually agreed to by the District and the Association.

4.11 Length of Contract – Work Year

A. Definitions.

(1) Base Year: The base year for Employees shall be defined as 185 days.

(2) Base contract year will include:

a. 180 contact days with students.

b. ***Two (2) days for state-funded professional development days (Summer Institute).***

c. One (1) day for All-Staff Day.

d. One (1) day for October State Inservice.

e. One (1) day for classroom set-up.

Revised: 06/16/2022

(3) Salary increases for **2022-2025** will be based on Implicit Price Deflator (IPD) as provided by OSPI.

(4) If there is a double levy failure, additional days funded by the levy will be eliminated. Staff and Administration will discuss the ramifications of the double levy failure.

B. Additional Required Days

(1) Employees new to the Onalaska School District will be required to be in attendance one (1) day prior to the opening of the school instructional term (new teacher day).

C. On the last day of school, Employees shall remain at their workstations for checkout and other final obligations until such time as determined by the building principal.

D. School for students K-12 shall be dismissed early at the first mid-term (the week preceding Veterans Day) for five (5) days for holding parent conferences as well as the previous Friday for preparing for conferences. School for students K-12 shall be dismissed early during the week before spring vacation for five (5) days for preparing and holding parent conferences. Employees will hold parent conferences on Thursday evening from 5 to 7:00 p.m., for fall and spring conferences. Employees will be permitted to leave school once the buses have left on Friday of fall and spring conference week.

E. Grades 1-5 will hold parent conferences on the first day of school.

F. To accommodate classroom preparation, teachers are allowed to come into the buildings ten (10) calendar days prior to the first contract day to work in their classrooms.

G. The last two (2) days of school shall be early release days to allow teachers to tend to end of the year requirements, such as grades, classroom clean-up.

Revised: 06/16/2022

4.12 State-Funded Additional Days

A. When the Washington State Legislature funds additional days for school improvement, these days will be added to the base year of 180 days for length of the current agreement and all references to extended days and per diem days shall reflect the new total base number of days (185) as the divisor. All activities must be consistent with the state guidelines.

Revised: 06/26/2019

4.13 Workday

The workday for Employees shall consist of the following:

A. Each Employee shall arrive at his/her work station by 8:00 a.m. and be permitted to leave after seven (7) hours, thirty (30) minutes continuous on-site time, except as provided in Item C and Item G. ***Grades K-5 will arrive for work at 8:00am and the instructional day will begin at 8:30am and end at 3:10pm. Grades 6-12 will begin their instructional day at 8:15am and end at 3:15pm. On all designated early release days, students will be released at 1:00pm.***

- B. Each Employee shall have a duty-free lunch period of not less than thirty (30) continuous minutes per workday.
- C. An Employee may leave the work site during the workday after notifying the principal or his/her designee and receiving his/her permission to do so.
- D. After notifying the principal or designee, the Employee may leave the work site after classes are dismissed to attend in-service workshops, instructional classes, attend school activities or personal appointments.
- E. The principal or his/her designee may grant permission to an Employee to leave early when there exists a significant emergency.
- F. Employees shall be allowed to leave the job site after buses have left on Fridays, or on any day that begins a holiday period or on any day in which they have been requested by an Administrator or his/her designee to attend a meeting beyond the regular workday.

Revised: 06/20/2016

- G. Employees assigned to Grades 6-12 shall receive one (1) planning period per day for educational purposes. One planning period is equivalent to one class period. Planning time shall not be assigned or contracted to other duties, unless mutually agreed to by the Employee and Employer, except as provided in Item I.
- H. Employees assigned to Grades K-5 shall receive a minimum of 320 minutes and a maximum of 405 minutes of planning time within each two-week period of time during the contract day to be used for educational purposes.

Revised: 06/20/2016

- I. An Employee called upon during his/her regular planning period to substitute for or assume the work duties of an absent Employee shall be provided compensation as follows:

- (1). For each period of substitution, the Employee would be compensated at the Employee's true hourly per diem rate. This shall be in addition to the Employee's regular compensation.

- (2). If feasible, Employees will be asked prior to the start of the instructional day if they are to use their planning period to substitute for another Employee. All Employees will be asked on a rotating basis to substitute. Any co-op substitute teacher in the building that has that time unscheduled will be utilized first.

- (3). When no substitutes are available at the elementary level (K-5), classes will be combined and split evenly between the two remaining teachers. Each teacher will receive .5 (one-half) of substitute pay.**

Revised: 06/16/2022

- J. No Employee shall be requested or required to teach subjects in more than one room at the same time. This does not prevent an Employee from using a lab during a class period.

- K. In no event would a non-certificated person be in charge of a class except in an emergency. Elementary music, library, and computer labs may be supervised by a classified employee.

Revised: 06/20/16

4.14 Inclement Weather

- A. When schools are opened late because of inclement weather, ice, snow or other emergencies, Employees will report thirty (30) minutes prior to the rescheduled start of the school day. When schools are closed because of inclement weather, ice, snow or other emergencies, Employees shall not be required to report to work.

Revised: 06/15/06

- B. When schools are closed early, Employees shall be permitted to leave school as soon as school buses have left the Onalaska School District grounds.

Revised: 06/15/06

- C. Employees shall suffer no loss in wages or benefits due to changes caused by inclement weather or other

4.15 Assignments, Vacancies and Transfers

Grade, subject, school and activity assignments shall be made by the Onalaska School District based upon the needs of the District and the demonstrated skill, ability and professional qualifications of the individual Employee to fulfill those needs.

4.16 Positions for the Following Year

A. The Board, in the determination of new assignments and Onalaska School District transfers shall consider Employees presently employed for announced positions upon receiving a written request from them. The following procedure shall be used:

B. Positions for following year:

(1). Prior to the posting, the Administration will review with the Association the posting.

Adopted: 08/23/10

(2). All vacancies and new positions established each school year shall be posted on the bulletin board in each building's faculty room and an electronic attachment sent to Association members.

Revised: 06/03/10

(3). The Employee shall submit to the Superintendent a written request for the posted position(s) within five (5) days. Current staff who have submitted a written request and who qualify will be included in the interview process for the vacant/new position.

Revised: 06/20/2016

(4). Qualified candidates selected by the administrative team and a teacher representative shall be interviewed. All vacancies or new positions shall be filled on the basis of the best qualifications as identified by the management and/or Board. Staff seniority will be a factor in filling vacancies or new positions.

Revised: 06/20/2016

(5). The Superintendent or his/her designee shall notify in writing and/or by personal conference each Employee, presently employed, the reason(s) for not granting the request.

Revised: 06/15/06

C. Retire/Rehire contract must follow current state law. Positions filled with retire/rehire employees shall be open and posted internally each year during March for the following school year. Any bargaining unit member that is eligible may request transfer into the position(s). Such request shall be granted. If no bargaining unit member requests transfer to the position(s) the existing hiring procedures will be used for filling the vacancy.

Revised: 06/03/13

4.17 Involuntary Transfer

A. The Administration will make an involuntary transfer only when necessary. Involuntary transfers will be based on qualifications, endorsements, ***clearly documented evidence from administration***, and reverse seniority. ***Placement of teachers will be based on school culture and student needs, as determined jointly by the Association and Administration. Considerations include student growth data, evidence gathered during the evaluation process, and other pertinent information as determined by the Association and Administration.*** An Association representative will meet with Administration to explore possible alternatives before the decision is finalized.

Revised: 06/16/2022

B. The Superintendent shall notify the affected Employee, in writing and by personal interview, of the reasons for the transfer before the change becomes effective.

C. ***An employee who is being involuntarily transferred must be notified in writing by August 1st.***

D. Two (2) days of release time will be given the affected Employee in order to complete the move if it is within

the Employee's presently assigned building. The District will provide packing and moving assistance for any in-district move or building reassignment.

E. If the involuntary transfer occurs when school is not in session (vacations, weekends, breaks or summer), the Employee will receive true per diem pay rather than release time.

F. A teacher cannot be moved more than two (2) grades levels above or below from their current position or to a different building.

Revised: 6/16/22

4.18 Layoff and Recall

The Board of Directors shall determine the educational program and services for the Onalaska School District, based upon the educational goals of the Onalaska School District and financial sources available for the following school year. Prior to April 15 of each year, the Board shall as accurately as possible determine present financial status and enrollment and projected financial status and enrollment for the following year and notify the Association of finding.

Revised: 05/14/10

In the event the District decides to add or delete programs to fit the educational needs of students or a financial emergency arises that requires the District to consider a Reduction In Force (RIF) affecting employees, the District shall confer with the Association at the earliest possible date and shall continue to confer throughout the process. The parties shall meet and discuss possible ways of avoiding a RIF and ways to minimize the potential negative impact of such action should it become necessary.

The parties shall also make every reasonable effort, jointly and separately, to minimize the impact of layoff by helping to seek other employment for RIFed employees and by re-hiring laid-off employees as soon as openings for which they qualify become available.

Revised: 06/11/10

- A. In the event that it is necessary to reduce the number of certificated employees for financial reasons, those certificated employees who will be retained to implement the District's reduced program and those certificated employees who will be terminated from employment will be identified by using the procedure set forth in paragraphs (D) through (L) hereof.

Revised: 6/11/10

- B. First the Board shall determine (by using a form on which each Employee indicates-plan to return, not to return) which, if any, staff member will not be returning to the Onalaska School District in the following school year by reason of retirement, family transfer, resignation, leave, discharge for cause or non-renewal for cause. Any such projected vacancies shall be then taken into account in determining whether additional reduction in certificated staff will be necessary.

Revised: 05/14/10

- C. Any certificated staff member to be retained by the Onalaska School District during a lay off must possess a valid Washington state teaching certificate and the necessary educational training for the position to be filled by him/her.

- D. In the event that it becomes necessary to reduce the number of employees in the School District, the District will discuss the projection with the Association prior to finalizing staffing.

Revised: 06/20/2016

- E. The following categories are established to ensure the qualifications of personnel assigned to retained positions and to allow for the least disruption of the ongoing program:

1. Elementary teachers (K-5) (Except those listed in (E) (3) hereof), will be considered for retention in the (K-5) category.

2. Secondary teachers (6-12) (except those listed in paragraph (E) (3) hereof, will be considered for retention in the secondary categories such as: science, math, social studies, language arts, industrial arts, home economics, languages (e.g. Spanish/German).
 3. Other certificated staff members will be considered for retention in the following categories according to their specialties. Including but not limited to the following: Counselors, Librarians, Driver Education, Elementary Special Education, Secondary Special Education, and Music.
 4. An Employee's category will be determined by the first week of April. This determination will be based upon the greatest number of classes that are being taught in a specific subject area such as Social Studies, Mathematics, Science, English, etc or by his/her specialty area at that time. (Example: majority of assigned classes are in social studies, the employee would be in the secondary social studies category). If an employee teaches an equal number of classes from two or more categories, his/her category area will be determined by his/her major area of college preparation.
- F. In the event that there are more qualified employees than available positions in a given category, the following criteria shall be used to determine which employee shall be retained in the categories.
1. Layoff shall be determined within each category based on ***clearly documented evidence from administration on teacher EVAL data, school climate and culture, student growth and achievement and other factors as agreed upon by the Association and Administration. Seniority will only be one of many factors to determine staff layoffs.***

Revised: 06/16/2022

- G. All certificated personnel not retained as a result of lay off shall be placed in an employment pool for one year for possible recall. Employment pool personnel shall be given the first opportunity to fill any position that becomes available on the same basis of seniority as reduction in force procedures and criteria relative to categories, specialties and State seniority. Insurance benefits will be made available to certificated personnel while on layoff.

Revised: 6/11/10

- H. It shall be the responsibility of each Employee placed in the employment pool to notify the Board or its designee in writing between January 1 and January 31, of the period during which the Employee is placed in the pool; if such Employee wishes to remain in the employment pool for the balance of a one year period. If such notification is not received, the name of any such Employee may be dropped from the employment pool.
- I. When a vacancy occurs for which persons in the employment pool qualify, notification from the Superintendent to such individual shall be by certified mail or by personal delivery. Those Employees in the employment pool shall be responsible for providing the Board with their current addresses. Such individual shall have five (5) calendar days from the receipt of the written offer to accept the position. If an individual fails to accept a position offered, such individual shall be dropped from the employment pool. The Onalaska School District shall utilize employment pool personnel as substitutes on a first priority basis.

Revised: 06/03/13

- J. In the event that reduction of staff is necessary, the District shall not retain an employee who holds a provisional contract, an emergency certificate or an employee who holds a non-continuing contract for leave replacement.

Revised: 06/11/10

- K. If an employee believes that his/her placement in categories/specialties is incorrect pursuant to the criteria of this procedure, the employee must notify the District in writing within ten (10) work days of the date upon which the Association was tendered the list. Such written notification must allege the facts which make the employee's or category/specialty ranking incorrect according to the criteria contained in this procedure. If an employee fails to make such timely notification, he/she shall be considered for retention in only those categories/specialties listed and with seniority as listed.

Revised: 06/11/10

- L. If such notification is given, the facts which make up the alleged improper categories/specialties shall be reviewed by the Association and District in an effort to resolve the matter. Upon the failure to resolve the matter within ten (10) work days after it is taken up by the Association and the District, the matter shall be submitted to a neutral third party arbitrator who shall determine the proper application of the paragraph as to the **qualifications** of the employee and as to categories/specialties and whose decision shall be final and binding on the District and the employee(s) involved. The Association and the Board shall make a joint request to the professional education and certification section of the Superintendent of Public Instruction for a member of her staff to act as arbitrator. If SPI declines to provide this service within two (2) days, the parties shall attempt to mutually agree on an arbitrator. In the event of a failure to agree, the parties shall request of the American Arbitration Association an arbitrator under AAA rules.

Revised: 06/16/2022

4.19 Longevity Stipend

The District will provide a longevity stipend of **\$750.00** per year for those employees who have an MA + 90 and have completed sixteen (16) to twenty (20) years of experience. **\$1000.00** for employees with MA +90 and completed twenty-one (21) to twenty-four (24) years. **\$1250.00** for employees with MA +90 and completed twenty-five (25) and up in years of service. This stipend will be paid during the May payroll.

Revised 06/16/2022

5. SALARY SCHEDULES

5.1 Annual Salary Schedules

- A. The salaries of all certificated Employees represented by this agreement shall be paid in accordance with the current teachers' salary schedule and provisions.

Revised: 06/20/2016

- B. It is mutually agreed that whenever the state legislature authorizes funds for the purpose of changing the Employee's salary or fringe benefits during the period of this contract the parties to this contract will reopen negotiations.

Revised: 08/23/10

- D. In accordance with Washington state law, all Employees shall be paid in twelve (12) monthly installments. In the event of a mistake in payment, the Administrator and Employee shall come to an agreement on the adjustments if possible. In determining said adjustment, the auditor's regulation shall be taken into consideration.

5.2 Salary Provisions

- A. Placement on the salary schedule shall be determined by each Association members' state-recognized degree(s), credits and clock hours earned beyond the highest degree, and experience in accordance with criteria defined by SPI regulations and directions for completing S-275.

Revised: 06/26/2019

- B. The salary schedule for the duration of this Agreement shall be subject to and agreed within any salary limitations imposed by the State of Washington.

- C. The amount of salary increase in each year shall not exceed an increase permitted by legislative action and rules and regulations promulgated for distribution of such salary increase money. All salary increases will be applied to all members of the Association.

Revised: 06/15/06

- D. The amount of salary increase shall be established when funds for salary increases are officially made known to the District, with such increase subject to any regulation or condition established by the State or the State Superintendent of Public Instruction.

- E. If, for any reason, the District is found in non-compliance with state salary regulations, provision is acknowledged for the District to adjust salaries to establish and maintain compliance and to avoid any penalty for non-compliance.

- F. All education and experience increments shall be paid retroactive to the first paid day of the school year

provided requirements are met as per Salary Schedule Placement Section B of this agreement.

G. Salary increases will be as follows:

2022-2023: 8.25%

2023-2024: IPD or 3.2%, whichever is higher

2024-2025: IPD or 3.0%, whichever is higher

Revised: 06/16/2022

5.3 Extra-Curricular Salary Base

The extra-curricular salary schedule is based on the negotiated Onalaska School District certified salary schedule.

Revised: 06/26/2019

5.4 Salary Schedule Compliance Provisions

A. If the above salary settlement causes the Onalaska School District to exceed the amount and/or percentage of funds authorized by law for Employees' salaries or causes the Onalaska School District to exceed the amount funded and received by the Onalaska School District for Employees' salaries and compensation, the Association and the District shall meet to negotiate the adjustment of salaries and benefits.

Revised: 06/19/06

B. In the event that the legislature appropriates and the Onalaska School District receives additional funds for purposes of increasing certificated Employees' benefits for the current school year, the Board shall immediately notify the Association and the parties shall commence negotiations for distribution of the money within twenty (20) days.

Revised: 08/23/10

5.5 Insurance Benefits

A. Beginning with the December 2019 payroll, SEBB rules, as established by the SEBB Board, will be followed.

Revised: 06/26/2019

5.6 Personal Property

A. Employees will be covered for loss or damage to personal effects, including Employee's tools, while the Employee is conducting business on behalf of the Onalaska School District, and Employee's vehicles while used in the commission of school district business.

B. The insurance that applies to your business personal property applies also to personnel effects owned by you, your officers, partners or your Employees, including Employees' tools and also including vehicles used in the course of employment in commission of school district business.

C. The most we will pay for loss or damage under this extension is \$5,000 per person at each described premises and at other locations while conducting business on behalf of the school district. The District's obligation to pay for tool and vehicle damage would be excess over the Employee's personal insurance coverage. The District will pay any deductible.

6. REPRESENTATION FEES

6.1 Association Dues

The Association which is the legally recognized exclusive bargaining representative of the Employees as described

in the Recognition clause of this collective bargaining agreement shall have the right to have deducted from the salary of members of the Association (upon receipt of a written authorization form) an amount equal to the fees and dues required for membership in the Association. The dues deduction form and authorization shall remain in effect from year to year, unless withdrawn in writing by the Employee. Dues deduction forms must be delivered to the business office within thirty (30) days from the start of school, or within thirty (30) days of an individual's beginning date of employment.

6.2 Fair Share Language

On or before September 1 of each school year, the Association shall give written notice to the District of the dollar amount of dues and assessments of the Association including the National Education Association and the Washington Education Association, which are to be deducted in the coming school year under payroll deductions. The total for these deductions shall not be subject to change during the school year. Payroll deduction will also be available for members who wish to contribute to WEA-PAC and the NEA Fund for Children and Public Education. All deductions continue year-to-year unless cancelled by the employee.

The deductions authorized above for Association members shall be made in twelve (12) equal amounts from each paycheck beginning with the pay period in September through the pay period in August of each year.

All staff employed after September or terminates employment before June, will only pay dues for the months they are employed at the regular monthly amounts.

The District agrees to remit dues promptly and directly to the Washington Education Association.

The District agrees to provide a list of certificated employees from whom the dues deduction has been made.

6.3

If an employee does not complete a membership enrollment form (which designates being a member of the Onalaska Education Association) they are covered by the Collective Bargaining Agreement and must be in the membership database.

The District agrees to provide the WEA UniServ Council Membership Contact with the names of all certificated new hires with the following information if a membership form is not completed:

Full name, address, last 4 digits of their Social Security number, birthdate, work location, and position.

The Association shall provide a report form for the District to fill in any change of personnel. On or before the monthly pay period, the District shall notify the Association of any changes in said list due to employees entering or leaving the employ of the District.

Revised: 09/01/2019

7.0 LEAVES

7.1 Sick Leave

A. At the beginning of each year, each Employee shall be credited with sick leave of twelve (12) days with full pay. Unused sick leave shall accumulate to a maximum of 1440 hours. Sick leave to be defined according to law in RCW 49.12.270.

Revised: 06/20/2016

B. In the event that any Employee covered by this agreement is injured due to an act of physical assault by students, by student's parents or guardians or by District staff while such Employee is on duty and while such Employee is engaged in district-authorized or otherwise lawful conduct, and is placed on State Worker Compensation (Labor & Industries) the District shall pay the difference between the Worker Compensation monthly benefit and the injured Employee's net monthly salary. For purposes of this section, "net salary" shall mean the Employee's gross salary minus those deductions required by state and federal law.

Adopted: 06/19/06

C. In the event an Employee is absent due to work related injury qualifying for Industrial Insurance benefits, the District shall pay the Employee their regular wage deducted from the Employee's accumulated sick leave and then personal leave in accordance with the amount paid to the Employee by the District. The Employee may submit any payment received from worker's compensation to the District for credit to the Employee's sick and personal leave balances.

Revised: 06/20/2016

7.2 Family Illness

Employees, upon request, may use accrued sick leave during a contract year when such absence is occasioned by the illness of any relative in the immediate family including spouse or children.

7.3 Bereavement Leave

Absences for bereavement shall include death of a family member, relative or close friend. Absences for bereavement shall be of sufficient duration to allow the Employee time to travel to and from the place of the service and to conduct necessary business while there. Absences in excess of 10 days must be approved by the Superintendent. Three days of bereavement leave will be paid leave days. ***In the case of bereavement leave for immediate family, employees will be allowed five paid bereavement days. Immediate family consists of parents, spouse, grandparents, in-laws, children, or siblings.***

Revised: 06/16/2022

7.4 Personal Leave

A. Each Employee of the Onalaska School District will be entitled up to three days per year for personal leave. Those days used as personal leave will not be charged against accumulated sick leave. Principals are to be informed, in writing at least two days in advance if possible, so that proper arrangements can be made. No more than two (2) persons gone per day per building unless approved by the building administrator. ***Employees should make every effort to secure a substitute.***

Revised: 06/16/2022

B. No personal leave may be requested the first week of school or the day before or after a holiday unless approved by the Superintendent.

Revised: 06/19/06

C. The Employee shall receive verification of personal leave within two (2) school days after submission to the building administrator.

E. Employees who do not use their personal days described above may choose to be compensated for up to three (3) days at substitute pay at the end of the school year and/or may roll days into the next year to a maximum accumulation of four and a half (4.5) days of personal leave. The employee is to let the District Office know in writing by June 1st of each year, the number of days they want cashed out. This will be paid in July.

Revised: 06/20/2016

F. Personal Leave must be used by June 1 of each year. Personal Leave requested after June 1 must be approved by the Superintendent.

Revised: 06/26/2019

7.5 Jury Duty Leave

A. If an Employee is called for jury duty, he/she is to notify the principal so that he/she may take necessary steps to have a substitute teacher take over that Employee's duties.

Revised: 06/15/06

B. In the event the Employee is summoned to serve, the amount he/she is paid by the Onalaska School District will be his/her monthly salary less the amount paid for performing this service. Adjustment in pay will be accomplished by the Onalaska School District after the Employee has completed his/her obligation to the court.

C. Employees may secure support from the Onalaska School District office in seeking relief from jury duty when it interferes with professional obligations to the teaching assignment.

D. An Employee who is subpoenaed to appear in court for non-school related business may use accrued sick leave. An Employee who is subpoenaed to appear in court for school related business shall be paid his/her regular salary.

Revised: 06/15/06

7.6 Association Leave

A. Up to twelve (12) days leave per year shall be granted the Association President or his/her delegate for matters related to the Association. Not more than two (2) Employees from each building will be granted leave on a given day unless approved by the building principal.

B. Up to one-half day per month release time shall be granted the Association President for Association business to be conducted in school.

C. Whenever possible, notification of the leave shall be submitted by the Association President in writing to the Principal two (2) days before the leave is to take effect.

Revised: 06/03/13

D. While on said leave, the Employee(s) shall be deemed in the employ of the Onalaska School District and shall be entitled to the same wages and benefits as if he/she were teaching in the District, including but not limited to, insurance, sick leave, retirement credit and seniority.

E. While on said leave, the Association shall be responsible for reimbursing the District the dollar amount equal to the substitute's salary and benefits.

Revised: 06/20/2016

7.7 Military Leave

A. All present Employees who have been called or volunteer (because of imminent compulsory duty) for active duty in the Armed Services of the United States, irrespective of a state of national emergency being declared, will accrue experience credits equal to what they would have had with continuous employment in the Onalaska School District to a maximum of two (2) years, providing they return to the Onalaska School District at the beginning of the next school year after release from military duty. Additional time may be granted at the discretion of the Board of Directors. Special consideration may be given to Employees that choose to enlist during time of national emergency.

Revised: 06/15/06

B. A guarantee of re-employment after military leave is contingent upon notification to the personnel office at least four (4) months before the commencement of the next school year of the intent to return.

C. A provisional Employee cannot apply military experience to attain permanent status.

D. All accumulated sick leave and other Employee benefits will revert to the Employee when he/she returns to the Onalaska School District. However, no Employee benefits will accrue during absence from the Onalaska School District.

Revised: 06/15/06

E. Any person returning from military service will have no guarantee of in position placement but is assured of Onalaska School District placement.

7.8 Leave Sharing

A. The Onalaska School District shall establish and administer a leave sharing plan in which eligible Employees may donate excess leave for use by a staff member who is suffering from, or has a relative or household member suffering from, an extraordinary or severe illness, injury, impairment or physical or mental condition. Such a program is intended to extend leave benefits to a staff member who otherwise would have to take leave without pay or terminate his/her employment with the Onalaska School District. Parental Leave will qualify for leave sharing.

B. The Superintendent is directed to establish procedures for staff members who accrue annual leave and for staff members who do not earn annual leave but who accrue leave to be used for illness, injuries or emergencies. The Superintendent is directed to administer the leave-sharing plan in a manner consistent with Washington state law and applicable collective bargaining agreements.

Legal References: RCW 28A.58.0991(28A.400.380) Leave sharing program
41.04.650-665 Leave sharing program

C. An Onalaska School District Employee is eligible to receive donated leave if:

(1). The staff member suffers from, or has a relative or household member suffering from, an extraordinary or severe illness, injury, impairment or physical or mental condition which has caused, or is likely to cause, the staff member to:

- a. Go on leave-without-pay status; or
- b. Terminate his/her employment;

(2). The staff member's absence and the use of shared leave are justified;

(3). The staff member has depleted, or will shortly deplete, his/her annual leave and sick leave reserves;

(4). The staff member has abided by Onalaska School District rules regarding sick leave use; and

(5). The staff member has diligently pursued and been found to be ineligible to receive industrial insurance benefits.

D. The Superintendent shall determine the amount of leave, if any, which a staff member may receive under this policy. However, a staff member shall not receive more leave than the number of contracted days remaining in the current school year. In the event that the condition requiring the Employee's absence continues beyond the current school year, the Employee shall not receive a total of more than 261 days of leave.

E. Onalaska School District Employees may donate leave as follows:

(1). A staff member who has an accrued sick leave balance of more than twenty-two (22) days may request that the Superintendent transfer a specified amount of sick leave to another staff member authorized to receive such leave. A staff member may not request a transfer that would result in an accrued sick leave balance of fewer than twenty-two (22) days. Sick leave as defined in RCW 28A.400.300 means leaves for illness, injury and emergencies.

Revised: 06/20/2016

F. The number of leave days transferred shall not exceed the amount authorized by the donating staff member.

G. The value of leave transferred is based upon the current salary rate of the person receiving the leave. The receiving staff member will continue to be paid his/her regular rate while on shared leave. For example, if a staff member earning \$15.00 an hour donates one day of leave to someone earning \$7.50 an hour, the recipient would get two days of leave. However, if the \$7.50-an-hour Employee donates one day to the \$15.00-an-hour Employee, the higher-paid Employee would receive one-half day of leave.

H. The value of any leave transferred under this policy that remains unused shall be returned at its original value to the staff member who donated the leave.

Revised: 06/20/2016

7.9 Leave of Absence

A. An Employee may apply for a leave of absence without pay after three years of teaching experience in the Onalaska School District. The Board may waive the experience requirement when it is in the best interests of the Onalaska School District and Employee. Among the reasons for a leave of absence will include, but not be limited to, approved professional study, rest or recuperation, extended travel, and approval work in a professionally related field.

B. Leaves shall be granted normally for a duration of one year or less, and shall expire at the date agreed upon. Extension of the leave will be considered by the Board upon written request.

C. The Employee will retain his/her position on the salary schedule in educational increments and teaching experience. If during the leave the Employee gains additional educational experience, he/she will advance on the

salary schedule accordingly.

Revised: 06/15/06

D. The Employee on leave will retain accumulated sick leave, retirement and other benefits agreed upon between the Board and the Employee granted leave.

E. The request for a leave of absence must be submitted to the Board in writing, explaining the purpose for the leave and how it will benefit the Onalaska School District and the Employee. The Board shall rule on the request and provide the Employee a written statement explaining the decision for approval or rejection of the request.

F. At the completion of the period of leave, the Employee shall be rehired at the same teaching position or its equivalent within the grade or building department level.

G. Upon returning, the Employee shall have the right to apply for another position for which he/she is qualified, in lieu of the previous teaching position held.

Revised: 06/15/06

7.10 Special Education: Release Time

The Onalaska School District shall provide up to a total of four (4) release days per special education teacher for the purpose of assessing students and preparing for Individual Education Plan conferences during the instructional day. The Employee must notify the building administrator at least two days in advance and must ensure that a substitute teacher is arranged. The day may be taken at the school building or at another location agreed on by the Employee and building principal. For every initial evaluation or reevaluation that must be completed, the teacher will receive a half day release time to complete the evaluation.

Revised: 06/26/2019

8. STAFF DEVELOPMENT

8.1 In-service Compensation

The Onalaska School District encourages attendance at professional activities held on the statewide in-service day(s). Association members participating in meetings, seminars and workshops approved by the principal and Superintendent will be reimbursed for mileage up to a one hundred (100) mile distance (200 miles round trip) as authorized by the District. Whenever possible, Employees will use District vehicles. Fees, which may include registration, materials and/or meals, will be reimbursed as authorized by the District.

Revised: 06/19/06

8.2 Attendance at Meetings, Conferences and Seminars

A. Whenever possible the District will conduct staff development during the Employee's workday.

Revised: 06/20/2016

B. For the purpose of staff and program improvement, up to seventy-five (75) work days will be authorized district-wide. These days shall be used for attending educational meetings, conferences, seminars or other professional growth activities. Days reimbursed by outside agencies shall not count against the District limit for staff development days.

Revised: 06/19/2016

C. The Employee will submit a request detailing purpose and goals to be achieved for the use of such days through the building principal and Superintendent, who will approve these requests and allocate the days in a manner to ensure reasonable distribution among all Employees. Attendance at meetings, conferences and seminars will be paid as follows when approved by the building principal and the Superintendent:

(1). Full payment: Substitute and necessary expenses paid by the Onalaska School District. This category applies to Employees authorized to represent the Onalaska School District at professional conferences, meetings and seminars.

(2). Partial payment: Substitute paid by the Onalaska School District, necessary expenses paid by the Employee or an outside agency. This category applies to Employees authorized to attend conferences, meetings and seminars.

D. The District and the Association will work to make clock hours available for District trainings.

Adopted: 08/23/10

8.3 Adding Endorsements and Qualifications

A. If a staff member is required by the District to obtain an additional certification or endorsement, the District will provide reimbursement of the cost of the assessment upon successful completion.

Adopted: 06/20/2016

9. CERTIFICATED STAFF EVALUATIONS

9.1 Purpose

A. The purpose of this evaluation system for teachers has the following elements, goals, and objectives:

- (1) The evaluation procedures set forth herein shall be to improve the educational program by improving the quality of instruction.
- (2) The evaluation process shall recognize strengths, identify areas needing improvement, and provide support for professional growth.
- (3) Within the selected instructional framework teachers will be allowed to exercise their professional judgment and will be evaluated on their own practice, skills, and knowledge.
- (4) An evaluation system should be grounded in trust and respect by all parties through the use of objective standards and by minimizing subjectivity.

B. The parties agree that the following evaluation system is to be implemented in a manner consistent with good faith and mutual respect and, as defined in RCW 28A.405.110 (1), “An evaluation system must be meaningful, helpful, and objective; (2) an evaluation system must encourage improvements in teaching skills, techniques, and abilities by identifying areas needing improvement; (3) an evaluation system must provide a mechanism to make meaningful distinctions among teachers and to acknowledge, recognize, and encourage superior teaching performance; and (4) an evaluation system must encourage respect in the evaluation process by the persons conducting the evaluations and the persons subject to the evaluations through recognizing the importance of objective standards and minimizing subjectivity.”

C. Additionally, the parties agree that the evaluation process is one which will be implemented with collaboration between the evaluator and the bargaining unit member, as described in WAC 392-191-025: “To identify in consultation with classroom teachers and certificated support personnel observed, particular areas in which their professional performance is satisfactory or outstanding, and particular areas in which the classroom teacher or support person needs to improve his or her performance.”

9.2 – Definitions and Notes

- **Criteria** shall mean the eight (8) state defined categories to be scored.
- **Component** shall mean the sub-section of each criterion.
- **Evaluator** shall mean a certificated administrator who has been trained in observation and evaluation techniques, and in the use of the specific instructional framework and rubrics contained in this agreement.
- **Artifacts** shall mean any products generated, developed, or used by a certificated teacher.
- **Evidence** shall mean examples or observable practices of the teacher’s ability and skill in relation to the instructional framework rubric.
- Evidence collection is a sampling of data to inform decisions about level of performance, should be gathered from the normal course of employment, and is not intended to mirror a Pro-Teach or National Boards portfolio.
- Input from parents or anonymous sources shall not be used as evidence in an evaluation. Student input may be used as evidence in an evaluation only if it is gathered by observing students during the course of a teacher observation.
- **Student Growth Data** shall be selected by the teacher and shall mean the change in student achievement between two points in time within the current school year.

- Assessments used to demonstrate such growth shall primarily be classroom-based and shall be initiated by the classroom teacher. Assessments used to demonstrate growth must be appropriate, relevant, and may include both formative and summative measures.
- **Not Satisfactory** shall mean:
- Level 1: Unsatisfactory – Receiving a summative score of 1 is not considered satisfactory performance for all teachers.
- Level 2: Basic – If the classroom teacher on a continuing contract with more than five years of teaching experience receives a summative score of two (2) two years in a row, or two years within a consecutive three-year period, the teacher is not considered to be performing at a satisfactory level.
- **Teacher** shall mean any certificated staff member who spends more than fifty (50) percent of his or her school day providing academically-focused instruction and grades for students, and whose duties are consistent with the state criteria for teachers and the District’s framework and rubrics.
- **School Day**, as it applies only to the evaluation of teachers, shall mean any day in which the majority of students are engaged in academically-focused learning activities.

9.3 – State Criteria and Framework

A. The following criteria will be used to evaluate certificated classroom teachers.

- (1) Centering instruction on high expectations for student achievement;
- (2) Demonstrating effective teaching practices;
- (3) Recognizing individual student learning needs and developing strategies to address those needs;
- (4) Providing clear and intentional focus on subject matter, content, and curriculum;
- (5) Fostering and managing a safe, positive learning environment;
- (6) Using multiple student data elements to modify instruction and improve student learning;
- (7) Communicating and collaborating with parents and school community;
- (8) Exhibiting collaborative and collegial practices focused on improving instructional practice and student learning.

B. The parties have agreed to the adopted evidence-based instructional framework developed by UW Center for Educational Leadership 5-Dimensions and approved by OSPI.

9.4 Criterion Performance Procedures, Scoring, and Tools

A. Each rating will be assigned the following numeric values:

Unsatisfactory – 1 Basic – 2 Proficient – 3 Distinguished – 4

- 1) When there is more than one (1) component, if a 4 (Distinguished) is scored, the overall criterion score cannot be lower than 2 (Basic)
- 2) When there are more than two (2) components to a criterion, the average of the component scores will be the final criterion score.
- 3) When a final criterion score includes a fractional number (for example 2.3), all scores with fractional values below .5 will be rounded down, and all fractional values .5 or above will be rounded up. (For example, a score of 2.33 would receive a final criterion score of 2 and a score of 2.5 would receive a final criterion score of 3.

B. Summative Performance Rating

- 1) All classroom teachers shall receive a summative performance rating for each of the eight (8) state evaluation criteria. The overall summative score shall be determined by totaling the eight (8) criterion-level scores as follows:
 - a) 8-14 points—Unsatisfactory
 - b) 15-21 points—Basic
 - c) 22-28 points—Proficient
 - d) 29-32 points—Distinguished

C. Student Growth Criterion Score

- 1) Embedded in the instructional framework are five (5) components designated as student growth components. These components are embedded in criteria as SG 3.1, SG 3.2, SG 6.1, SG 6.2, and SG 8.1. The evaluator shall add up the raw scores on these components and the employee shall be given a score of low, average or high based on the following scoring bands:
 - a) 5-12—Low
 - b) 13-17—Average
 - c) 18-20—High
- 2) Student growth data shall be derived from multiple sources, and must be appropriate and relevant to the teacher and subject matter. With the exception of formative assessments, student achievement data that is not calibrated to show growth between two points in time during the current school year shall not be used to calculate a teacher's student growth criterion score.
- 3) If a teacher receives an overall summative score of 4 (Distinguished) and a Low student growth score as shown above, s/he must automatically be moved to the Proficient (3) level for the summative score.
- 4) If a teacher receives a Low student growth score on the summative evaluation, the teacher will select one of the following activities in which to engage:
 - a) Triangulate student growth measure with other evidence (including observations, artifacts, and student-related evidence) and additional levels of student growth based on classroom, school, district and state-based tools;
 - b) Examine extenuating circumstances possibly including: goal setting process/expectations, student attendance, and curriculum/assessment alignment;
 - c) Schedule monthly conferences with the evaluator to discuss/revise goals, progress toward meeting goals, and best practices;
 - d) Create and implement a professional development plan to address student growth areas.

9.5 – Applicability and Implementation Plan

A. This evaluation system only applies to classroom teachers, specifically those with assigned group(s) of students who spend more than fifty (50) percent of their workday providing academically focused instruction and grades for those students, and whose duties are consistent with the state criteria for teachers and the District's framework and rubrics.

B. The term "classroom teacher" does not include ESA's, counselors, librarians, media specialists, TOSA's, instructional coaches, curriculum specialists, or other bargaining unit members who do not spend more than fifty (50) percent of their workday providing academically focused instruction and grades for those students and whose duties are not consistent with the state criteria for teachers and the District's framework and rubrics. Such bargaining unit members shall continue to be evaluated under the current evaluation system as detailed elsewhere in this Agreement.

C. The comprehensive and focused evaluations referenced above shall be conducted in accordance with the statutory requirements in RCW 28A.405.100.

D. Training for evaluators in rater agreement shall take place prior to the classroom teacher training. If no trainings are available before the classroom teacher trainings, the evaluators shall take the first available training.

E. Every teacher shall be notified by the end of the previous school year of his or her evaluator and whether he or she will be evaluated using a Comprehensive or Focused evaluation the following year.

F. Comprehensive evaluations will occur every six (6) years, unless the certified teacher is on a Plan of Improvement or if they score Basic or Unsatisfactory on the previous year's evaluation, regardless of Focus or Comprehensive.

Revised: 06/26/2019

9.6 - General Evaluation Agreements

A. Out of Content/Endorsed Areas - Teachers evaluated while teaching outside of their content areas or endorsed areas shall have minimal emphasis placed on their understanding of subject matter, content, and curriculum during their first year of such placement. However, consideration may be given to teachers' progress towards endorsement.

B. As per WAC 181-82-110 (1) (b), no teacher shall be "subject to non-renewal or probation based on evaluations of their teaching effectiveness in the out-of-endorsement assignments".

C. Teachers shall not be evaluated as a member of a team while teaching outside of their content or endorsed areas, except at the option of the teacher.

D. All aspects of the evaluation procedure, including observations, shall be conducted openly and with the full knowledge of the teacher. Mechanical or electronic devices shall not be used to listen to or record the proceedings of any class without prior knowledge and consent of the teacher.

E. No hearsay or unsubstantiated complaints against an employee shall be included in any documentation pertaining to an evaluation.

F. The evaluation system shall include steps taken by the District to insure confidentiality and security for all evaluation documents, including electronic documents, consistent with state public disclosure requirements and guidelines.

G. The total observation time for each teacher for each school year shall not be less than sixty (60) minutes. At least one (1) observation shall be for a minimum of thirty (30) minutes.

9.7 - Professional Development

A. Prior to being evaluated under the new evaluation system, the District shall provide professional development relevant to the framework and evaluation process. Each teacher shall receive adequate professional development in order to understand the framework and the evaluation process. Such professional development shall be provided as follows:

(1) Each employee within fifteen (15) days of employment or within fifteen (15) days from the commencement of the school year, whichever is later, shall be given a copy of the evaluation criteria, procedures, and any relevant forms or information appropriate to the teacher's position and track in the evaluation cycle.

(2) The parties shall meet to discuss an evaluation-related professional development plan which takes into account compensation, timing, duration/quantity, content, control of time, etc.

(3) All classroom teachers, both provisional and continuing, shall be expected to participate in District-provided evaluation training that occurs during the contracted work day or at other dates and times, and at rates agreed to by the District and the Association. Such training shall be designed to provide the staff with the skills necessary to participate in the new evaluation system.

9.8 - Provisional Teachers

A. "Provisional Teachers" are those who are within their first three years of employment with the District, except for those who have at least two years of certificated employment with another school district in the state of

Washington. Those with such experience shall be provisional only during their first year of employment with the District.

B. All Provisional Teachers are subject to non-renewal of employment contract pursuant to RCW 28A.405.220.

C. All Provisional Teachers in the third year of provisional status shall be observed at least three times in the performance of his or her duties and the total observation time for the school year shall not be less than (90) ninety minutes.

D. All Provisional Teachers who are new to the profession and whose performance is determined to be Proficient (Level 3) or Distinguished (Level 4) by the end of their second year of employment in the District shall be removed from provisional status by the Superintendent.

E. The Principal shall make at least one (1) observation for a total observation time of thirty (30) minutes within the first forty-five (45) calendar days of employment of all Provisional Teachers.

F. *Revised: 06/26/2019*

F. Before non-renewing a provisional teacher, the evaluator shall have made good faith efforts beyond the minimum requirements of the evaluation process to assist the teacher in making satisfactory progress toward remediating deficiencies. The efforts shall include:

(1) A completed comprehensive evaluation conducted in accordance with the Procedures for Evaluation described in this section.

(2) A specific and reasonable plan designed to assist the teacher in making satisfactory progress in improving his/her performance, including benchmarks defining desired performance, and indicators of benchmark achievement.

(3) A description of the assistance and services the District will provide to the teacher to improve his/her performance;

(4) Periodic reports to the teacher of the evaluator's judgment on the teacher's progress toward remediating deficiencies;

(5) Written notice to the Association and teacher regarding the teacher's progress prior to March 1, or thirty (30) calendar days after the teacher began work on the plan, whichever is later.

10. Procedures for Evaluation

10.1 - General

A. All classroom teachers shall be evaluated each school year by their principal. In the event that circumstances prevent the principal from performing an observation or an evaluation, his or her designee may do so with approval of the Superintendent. The principal or designee is referred to herein as the "evaluator."

B. If a teacher is assigned to two or more schools, s/he shall be able to choose his or her evaluator.

C. Evidence used in evaluations may come from sites other than the classroom.

10.2 - Informal observation

Informal observations of less than thirty (30) minutes in duration, or a series of observations (two or more observations occurring within any ten (10) working days) may be utilized by the evaluator at his/her discretion provided the observation is of sufficient length to allow the evaluator to adequately assess the situation being observed and the teacher receives a copy of the record of each observation as compiled by the evaluator within three (3) days of the observation. If there is an area of concern noted in any such record, written documentation of the observation must be provided to the teacher for that evidence to be used in the evaluation process.

A. Information or data gathered during informal/drop-in/walkthrough visits to a teacher's classroom by his or her evaluator may be used as part of the evaluation when prior notice of such visits has been provided. Such notice must be verbally given to individual teachers no later than the previous school day.

B. Any time after an informal observation has been conducted a teacher may request a post-observation conference to discuss that observation.

10.3 Formal Observations

All teachers shall be observed at least once in the performance of their assigned duties. Total observation time for each employee for each school year shall not be less than 60 minutes. Prior to each formal observation, the teacher and the evaluator shall mutually agree to the date, time and location for said observation.

- A. Such formal observations will take place when the teacher is providing instruction to students.
- B. Except in cases of emergencies or unforeseeable circumstances, formal observations shall not be scheduled less than four (4) weeks apart, except at the request of the teacher, in order to allow for conferencing and growth.
- C. An evaluator's observation reports shall only focus on the observations of activities discussed by the teacher and evaluator during the pre-observation conference. However, all aspects of the observation may be discussed in a post-observation conference. Teachers shall have the opportunity to provide unobserved evidence of having met certain criteria and goals.
- D. If the teacher requests, the administrator will meet with the teacher two (2) weeks prior to submission and review evidence/artifacts that may impact summative evaluation.

Revised: 06/20/2016

10.4 - Focused Evaluations

A. In the years when a comprehensive summative evaluation is not required, classroom teachers who received a comprehensive summative evaluation performance rating of Proficient (level 3) or above in the previous school year are required to complete a focused evaluation. A focused evaluation includes an assessment of one of the eight criteria selected for a performance rating plus professional growth activities specifically linked to the selected criteria.

- (1) Teachers on focused evaluations shall have the option of selecting which one of the eight criteria will be assessed, plus the professional growth activities linked to that criterion. The role of the evaluator shall be to either approve the proposed activities or suggest modifications to produce a jointly agreed upon activity or activities.
- (2) The selected criterion, however, must be approved by the teacher's evaluator and may have been identified in a previous comprehensive summative evaluation as benefiting from additional attention. A group of teachers may focus on the same evaluation criterion and share professional growth activities. Each teacher may combine his/her self-assessment with the district and/or building initiatives and select one (1) professional goal from the state criterion for the year. In addition, the teacher shall determine a student growth goal for Student Growth Component 3.1 or 6.1.

Revised: 06/26/2019

- (3) If the selected criterion for the focused evaluation has been determined to be non-observable, a classroom-based observation will not be required.
- (4) Teachers shall have the option of being evaluated as a member of a team or as an individual.
- (5) The evaluator must assign a summative evaluation performance rating for the focused evaluation using the methodology adopted by the Superintendent of Public Instruction for the instructional framework being used.
- (6) A teacher may be transferred from a focused evaluation to a comprehensive summative evaluation at the request of the teacher or at the direction of the teacher's evaluator.
- (7) The request of the teacher must be received in writing prior to the start of the school year. The direction of the evaluator must be communicated during the prior year's final evaluation conference based on concerns related to one of the other evaluative criteria. That concern and that direction shall be shared with the teacher in writing at that time.

10.5 Comprehensive Evaluation

Revised: 06/26/2019

A. All classroom teachers shall receive a comprehensive summative evaluation at least once every six (6) years. A comprehensive summative evaluation assesses all eight evaluation criteria and all criteria contribute to the comprehensive summative evaluation performance rating.

Revised: 06/26/2019

B. The following classroom teachers shall receive an annual comprehensive summative evaluation: Provisional Teachers and any classroom teacher who received a comprehensive summative evaluation performance rating of level 1 or level 2 in the previous school year.

10.6 Evaluation Steps

A. Step 1: Self-Assessment

(1) Before October 1st, each teacher shall reflect on his/her practice and complete the *Framework for Teaching Self-Assessment* document (Form A). This is a personal reflection of practice and the teacher has the option of sharing or not sharing the results with the administration. The self-assessment shall serve as a tool for the goal setting conference.

B. Step 2: Goal Setting Conference

(1) Each teacher may combine his/her self-assessment with the district and/or building initiatives and select one (1) professional goal from the state criteria for the year. In addition the teacher shall determine a student growth goal for Components SG 3.1, SG 6.1, and SG 8.1. (The goal for SG 6.1 and SG 8.1 may be the same goal.) The *Goal Setting Conference* document (Form B) shall be completed by the teacher on or before October 1 and sent to the evaluator prior to the goal setting conference.

Revised: 06/26/2019

(2) The evaluator shall review the *Goal Setting Conference* document (Form B) in advance of the conference and a conference date shall be determined.

C. Step 3: Pre-Observation

(1) For formal observations, the teacher shall complete the *Pre-observation Lesson Plan* document (Form C) and send it to the evaluator prior to the scheduled pre-observation conference. The evaluator shall read the lesson plan in advance of the scheduled pre-observation conference.

(2) The teacher and evaluator shall meet and discuss the lesson plan and identify any specific areas of focus, establish a date for the formal observation, and discuss professional activities to be observed, including their content, objectives, strategies, and possible evidence to meet the scoring criteria. (The goals may be referenced, if applicable).

D. Step 4: Observation

(1) The evaluator shall conduct the observation of practice within three (3) working days of the pre-observation conference. The evidence will then put in the *Formal Observation Evidence Gathering* document (Form D). The evaluator shall share a copy of the evidence with the teacher within three (3) working days of the observation. The teacher may add to it or correct it, as necessary. If either the teacher or evaluator is unavailable to meet within the three (3) day period, the conference shall be re-scheduled to occur within three (3) school days of such cancellation.

E. Step 5: Post-Observation

(1) The teacher shall conduct a self-assessment of the lesson by (1) reviewing the evaluator's evidence and (2) answering the questions on the *Post-Observation* document (Form E). The teacher will share the assessment of the lesson by highlighting the appropriate components/levels of performance on the *Formal Observation Evidence Gathering* document (Form D) that he/she received from the evaluator. The teacher will send the document back to the evaluator within three (3) school days.

(2) The evaluator shall study the teacher's self-assessment of the lesson.

(3) The teacher and evaluator shall meet for the post-observation conference within three (3) working days. The teacher will lead the discussion of his/her evidence and the reasons for assessing the component as he/she did. If

either the teacher or administrator is unavailable to meet within the three (3) day period, the conference shall be re-scheduled within three (3) school days of such cancellation.

F. Step 6: Summative Assessment / Score

(1) No later than May 10th, the teacher and evaluator shall meet to discuss the teacher's final summative score. At the end of the evaluative cycle, the teacher shall be invited to review the evidence accumulated throughout the school year in which the evaluation is conducted, including:

- a. Formal observation/evaluations
- b. Informal observations
- c. Artifacts
- d. Student growth data
- e. Ancillary evidence

(2) Student growth data shall only be used in the teacher's evaluation process if such data is relevant to the teacher and the subject matter. "Student growth" means the change in student achievement between two points in time.

(3) Employees shall have transparent access to all such District data available.

(4) Multiple measures of student growth must be used in the evaluation process and such measures may include but is not limited to:

- a. Classroom-based assessments
- b. School-based assessments
- c. District-based assessments
- d. State-based tools.

(5) Multiple measures may also be used as evidence to assess a teacher's professional performance against the instructional frameworks. Such measures, selected by the teacher, may include, but are not limited to the following:

- a. Artifacts such as lesson plans, IEPs, portfolios, newsletters, videos of practice, learning objectives, learning targets, emails, perception surveys, exit tasks, phone logs, PLC notes, data analysis, discipline referrals, posted routines, posted rules and goals, case studies of student progress, analysis of student work over time, classroom observation of evidence of student learning.
- b. Teachers shall not be required to create artifacts solely to meet the requirements of the evaluation system. Additionally, tools or forms used in the evaluation process may be considered as artifacts.

(6) Professional Contributions such as curriculum development, leading professional activities, participating in professional development, setting professional goals, participating in PLCs, use of exemplars, family engagement, parent communications, peer assistance and review, mentoring and support to others, coaching, leadership roles, etc.

(7) Communications with parents may include, but are not limited to, phone calls, emails, grade reports, progress reports, conferences, etc.

(8) Impacts on Learning such as student work samples and learning goals; district, school, and classroom assessment of students; student portfolios, formative and summative student growth data, student projects, data walls, etc.

(9) Such multiple measures shall be selected by the teacher after consultation with the evaluator. Teachers may, but shall not be required to, submit artifacts and evidence for completion of their evaluation cycle. Teachers shall not be required or expected to produce all student growth data available or all teacher performance evidence available.

G. The teacher shall use the evidence to conduct a self-assessment for current, typical performance for the year's evaluative cycle using the *Summative Evaluation of Practice* document (Form F). This document shall be used in discussion with the evaluator. It shall not be submitted as part of the evaluation cycle.

H. The teacher and evaluator discuss their overall assessment of the evaluation process, and their perceptions of the results of that process during the conference.

- I. If an agreement cannot be reached on the assessments, the evaluator's assessment shall be recorded and the teacher may follow the due-process agreement already set in the contract.
- J. If the evaluator assigns the teacher a final summative score below Proficient, the evaluator must provide at least three (3) pieces of evidence for that judgment for each criterion scored Basic or Unsatisfactory.
- K. If a classroom teacher that is a continuing contract employee with more than five years of teaching experience receives a Level 2 (Basic) rating for two consecutive years or two years within a consecutive three-year time period, then his or her performance shall be judged "unsatisfactory".
- L. All employees receiving an annual, final summative performance rating below level 3, Proficient, shall be given additional support by the District. Such support may include, but not be limited to, class size limits, paid in-service training, release time to observe colleagues, option to transfer, outside evaluator, assignment of a coach/mentor; additional, focused professional development resources, professional growth opportunities, and guided growth plans.
- M. The employee and evaluator shall meet either prior to the end of the school year in which the "Basic" or "Unsatisfactory" rating was received, or at the beginning of the following school year, to mutually determine the kind of additional support that would best serve the employee.
- N. Any teacher whose performance has been judged unsatisfactory on the *Summative Evaluation of Practice* document (Form F) may be placed on a program for improvement any time after October 15 of the following year.
- O. The teacher will sign two (2) copies of the *Summative Evaluation of Practice* document (Form F). Each teacher shall sign the observation and evaluation forms to indicate receipt. The signature of the teacher does not, however, necessarily imply that the employee agrees with its contents, only that he or she has read it. The teacher may attach any written comments to observations and to the final annual evaluation report as well. Teachers shall have the right to attach additional comments or a rebuttal to the Summative Evaluation of Practice (Form F) at any time.

11 - Probation (Non-Provisional)

11.1 – General

- A. Teachers may be placed on probation regardless of their evaluation system.

Revised: 06/20/2016

- B. No teacher shall be placed on probation if he or she has been evaluated by an evaluator who has not received training in the new (ESSB 5895) evaluation system with an emphasis on developing inter-rater reliability.
- C. Teachers shall have the right to Association representation at all probationary conferences.

11.2 – Establishment of Probationary Period

- A. The purpose of the probationary period is to give the teacher an opportunity to demonstrate improvements in discrete areas according to the criteria included in the evaluation instrument (WAC 392-191-045(3)). A probationary period of sixty (60) school days shall be established. Additional days may be added if deemed necessary to complete a program of improvement and to evaluate the probationer's performance, as long as the probationary period is concluded before May 15th of the same school year.
- B. The probationary period may be extended into the following school year if the probationer has five or more years of teaching experience and has a comprehensive summative evaluation performance rating as of May 15th of Level 2 (Basic) or less.
- C. The Superintendent shall place on probation any employee whose performance has been judged unsatisfactory based on the evaluation criteria, no later than February 1st of any school year.
- D. Before placing a teacher on probation, the following shall occur:

(1) The evaluator shall meet with the employee in an attempt to resolve matters relating to performance, before probation is recommended. This conference shall be held no later than January 20th. The employee shall have the opportunity to have an Association representative in attendance at the conference.

(2) If an employee is being considered for probation, the recommendation to the Superintendent for probation must be made on or before January 30th. The evaluator must make a written recommendation of same to the Superintendent. A copy of the recommendation for probation must be sent to the employee. The evaluator's recommendation for probation shall include the following:

- a. A definition of the problem in terms of deficiencies in discrete areas based upon the evaluative criteria.
- b. Expectations delineating levels of performance that would constitute acceptable performance in the problem areas defined. Once the areas of deficiency and the criteria for improvement have been determined, they shall not be changed.
- c. A specific and reasonable plan of improvement that spells out a course of action and time expectations for the employee involved to reach an acceptable level of performance in discrete areas in which the employee may need improvement, according to the criteria included on the evaluation instrument; and
- d. A specific prescription for assistance that spells out courses of action whereby the employee shall be assisted, counseled, and tutored to improve the level of performance to an acceptable level. Such prescription shall include a system for periodic feedback during the probationary period, supports provided and funded by the District, and the dates those supports will be in place.

(3) Performance standards, will not be greater for probationary employees than for other teaching staff. At the request of the probationary employee, release time shall be granted in order to comply with requirements of the plan of improvement that are beyond the usual and customary requirements of the job.

(4) The Superintendent, or his/her designee, shall review the evaluator's recommendation for probation. If the Superintendent or his/her designee determines that there is an alternative to probation, he/she may continue to work with the parties involved.

(5) If it is determined by the Superintendent that probation is warranted, then the Superintendent shall notify the employee in writing and such notice shall include all provisions of Step 2 above. At this time the evaluator shall meet with the employee and, at his or her request, a representative of the Association, to go over the plan of improvement, both for understanding and to collaborate in making any changes that the parties might deem prudent.

11.3 - Evaluation During the Probationary Period

A. During the probationary period, the evaluator shall meet with the staff member at least twice monthly to supervise and provide a written evaluation of the staff member's performance.

(1) The probationer may request and the evaluator may authorize one (1) additional certificated administrator to evaluate the probationer. This administrator may be another certified administrator from within the District or from outside the District.

- a. ESD Evaluator - If such request is not granted, at the request of the probationary employee an educational service district (ESD) evaluator shall be assigned by the ESD to evaluate him or her.
- b. The ESD evaluator will do an evaluation independent of the original evaluator, but using the plan of improvement mutually agreed to by the District and the Association as a basis for the evaluations.
- c. The ESD evaluator will evaluate the employee based on observation of classroom performance and student growth data, professional contributions, and impacts on learning presented by the employee.
- d. During this time the employee will not be transferred from the supervision of the original evaluator but his or her final summative evaluation will be based primarily on the findings and conclusions presented to the original evaluator by the ESD evaluator.

B. The probationer must be removed from probation if he/she has demonstrated improvement to the satisfaction of the original evaluator in the area(s) specifically detailed in his/her initial notice of deficiency and subsequently detailed in his/her plan of improvement.

C. A teacher who is on a plan of improvement must be removed from probation if s/he has demonstrated improvement in the areas described as deficient. The teacher must also be removed if he or she has five (5) or fewer years of experience and scores a 2 (Basic) or above, or if he or she is a teacher of more than five (5) years of experience and scores a 3 (Proficient) or above.

D. Lack of necessary improvement during the established probationary period, as specifically documented in writing with notification to the probationer, shall constitute grounds for a finding of probable cause for non-renewal of contract or discharge.

E. Immediately following the completion of a probationary period that does not produce performance changes detailed in the initial notice of deficiencies and program for improvement, the teacher may be removed from his or her assignment and placed into an alternative assignment for the remainder of the school year. This reassignment may not displace another employee nor may it adversely affect the probationary teacher's compensation or benefits for the remainder of that teacher's contract year. If such reassignment is not possible, the district may, at its option, place the teacher on paid leave for the balance of his or her contract term.

11.4 - Non-renewal, Adverse Action, and Discharge

In the event that there is determined to be probable cause to non-renew, adversely affect, or discharge a teacher, the teacher shall receive written notice and the District will follow the procedures specified in Washington Revised Code 28A.400 et. seq.

12.0 - Evaluation Results and Record Keeping

12.1 – Use of Results

A. Evaluation results shall be used

- (1) To acknowledge, recognize, and encourage excellence in professional performance.
- (2) To document the level of performance by a teacher of his/her assigned duties.
- (3) To identify specific areas in which the teacher may need improvement according to the criteria included on the evaluation instrument
- (4) To document performance by a teacher judged unsatisfactory based on the District evaluation criteria.
- (5) Beginning in 2015-2016, as one of the multiple factors in Human Resources and personnel decisions, only as defined elsewhere in this Agreement.

B. Evaluation results shall not be:

- 1) Shared or published with any teacher-identifying information
- 2) Shared or published without prior notification to the individual and Association.
- 3) Used to determine any type of base or additional compensation.

C. Evaluators shall not consider school-wide, or District-wide, Summative Performance Ratings when evaluating individual teachers. (i.e. nothing prohibits an evaluator from evaluating all teachers as Distinguished within a school.)

12.2 - Recordkeeping

A. The District shall adhere to the following:

- (1) A copy of the final framework rubric, teacher's written comments, if applicable, and forms shall be included in the teacher's personnel file.
- (2) Teachers shall have access to their eVAL account in current, and subsequent, year(s).
- (3) Evaluators shall notify the teacher of any additional evidence submitted about them to eVAL within forty-eight (48) hours of submission.

- (4) Teachers shall not be required to share personal assessment information utilized within the eVAL system.
- (5) Teachers shall not be required to use the eVAL tool if an acceptable alternative is available.
- (6) Any and all data entered into eVAL shall be considered confidential, and not subject to public disclosure.

12.3 - Evaluation Documents

Only the final summative evaluation document, along with any comments submitted by the teacher, shall be kept in the personnel files. All other evaluation documents shall, at the request of the teacher, be either returned to him or her or destroyed.

13.0 Legislative Impacts

This Article of the Agreement shall be reopened at the request of either party for the purpose of negotiating legislative impacts on the Collective Bargaining Agreement.

14. Evaluation Forms

ONALASKA SCHOOL DISTRICT

14.1 Framework for Teaching Self-Assessment

FORM A

Teacher's Name _____ School _____

Grade(s) _____ Subject(s) _____

Self-Evaluation Completion Date _____

Personal Notes and Considerations for Strengths and Growth (Attach to 5D+ rubric):

GOAL SETTING CONFERENCE DOCUMENT (FORM B)

Teacher _____ Date _____

Principal _____

Based on your self-assessment and any school or district initiatives, what component(s) have you identified as the focus for the year?

Component _____

—

Component _____

—

What would success on this component look like? What would count as evidence? How will you know when you have achieved growth?

Student Growth Data to be used (examples in the MOU and must tie to at least state criteria #3, #6 or #8): In review of current and past data, what would be a goal of student growth?

1. _____ State Criteria #(s) _____

2. _____ State Criteria #(s) _____

3. _____ State Criteria #(s) _____

Collaborative Goal: Based on the self-assessment and my administrator's input, we have selected component _____ as an additional area of focus.

Pre-Observation Lesson Plan

Form C

Teacher: _____ **School:** _____ **Date:** _____

1. What is the purpose of this lesson? What are your learning targets/objectives for this lesson?

2. Briefly describe the students in this class. How will you differentiate individuals or groups of students in the class?

3. How will you engage the students in learning? What will you do? What will the students do? (Provide any worksheets or other materials the students will be using).

4. Will the students work individually, or in a small or whole group?

5. How do you plan to assess the students?

6. (Optional) Is there anything or anyone that you would like me to specifically observe during the lesson? (This could be teacher-focused or student-focused)

Observation will be on _____

14.4 FORMAL OBSERVATION EVIDENCE DOCUMENT

Form D

Teacher's Name _____ **School** _____

Grade _____ **Subject** _____ **Date** _____

Observer _____

ONALASKA SCHOOL DISTRICT

14.5 POST-OBSERVATION CONFERENCE DOCUMENT

Form E

Name _____ **School** _____

Grade _____ **Subject** _____

Date of Lesson _____ **Date of Reflection** _____

1. In general, how successful was the lesson? Did the students learn what you intended for them to learn?
How do you know?

2. If you have samples of student work, what do they reveal about the students' levels of engagement and understanding?

3. Comment on your classroom procedures, student conduct, and your use of physical space. To what extent did these contribute to student learning?

4. Did you depart from your plan? If so, how and why?

5. Comment on different aspects of your instructional delivery (e.g., activities, grouping of students, materials, and resources). To what extent were they effective?

6. If you had an opportunity to teach this lesson again to the same group of students, what would you do differently?

14.6 SUMMATIVE EVALUATION OF PRACTICE

Form F

Name of Teacher _____ School _____

Teacher Summative Statements	
1	Professional practice at Level 1 does not show evidence of understanding or demonstration of the concepts underlying individual components of the criteria. This level of practice is ineffective and may represent practice that does not contribute to student learning, professional learning environment, or effective teaching practice. This level requires immediate intervention and specific district support. Failure to show adequate growth is grounds for dismissal/nonrenewal.
2	Professional practice at Level 2 shows a developing understanding and demonstration of the concepts underlying individual components of the criteria but performance is inconsistent. This level may be considered minimally competent for teachers early in their careers or experienced teachers in a new assignment, but insufficient for more experienced teachers. This level requires specific and relevant support.
3	Professional practice at Level 3 shows evidence of thorough knowledge of all aspects of the profession. This is successful, accomplished, professional, and effective practice. Teachers at this level thoroughly know academic content, curriculum design/development, their students, and a wide range of professional resources. Teaching at this level utilizes a broad repertoire of strategies and activities to support student learning. At this level, teaching is strengthened and expanded through purposeful, collaborative sharing and learning with colleagues as well as ongoing self-reflection and professional improvement.
4	Professional practice at Level 4 is that of a master professional whose practices operate at a qualitatively different level from those of other professional peers. Teaching practice at this level shows evidence of learning that is student directed, where students assume responsibility for their learning by making substantial, developmentally appropriate contributions throughout the instructional process. Ongoing, reflective teaching is demonstrated through the highest level of expertise and commitment related to all students' learning, challenging professional growth, and collaborative leadership.

The preponderance of evidence for this teacher demonstrates a level _____.

Strengths of the Teacher's Practice

Areas for Growth in the Teacher's Practice

We have conducted a conversation on the above items.

Teacher's signature: _____

Date: _____

Administrator's signature: _____

Date: _____

14.6 SUMMATIVE EVALUATION OF PRACTICE: FOCUS

Form G

Name of Teacher _____ School _____

Teacher Summative Statements	
1	Professional practice at Level 1 does not show evidence of understanding or demonstration of the concepts underlying individual components of the criteria. This level of practice is ineffective and may represent practice that does not contribute to student learning, professional learning environment, or effective teaching practice. This level requires immediate intervention and specific district support. Failure to show adequate growth is grounds for dismissal/nonrenewal.
2	Professional practice at Level 2 shows a developing understanding and demonstration of the concepts underlying individual components of the criteria but performance is inconsistent. This level may be considered minimally competent for teachers early in their careers or experienced teachers in a new assignment, but insufficient for more experienced teachers. This level requires specific and relevant support.
3	Professional practice at Level 3 shows evidence of thorough knowledge of all aspects of the profession. This is successful, accomplished, professional, and effective practice. Teachers at this level thoroughly know academic content, curriculum design/development, their students, and a wide range of professional resources. Teaching at this level utilizes a broad repertoire of strategies and activities to support student learning. At this level, teaching is strengthened and expanded through purposeful, collaborative sharing and learning with colleagues as well as ongoing self-reflection and professional improvement.
4	Professional practice at Level 4 is that of a master professional whose practices operate at a qualitatively different level from those of other professional peers. Teaching practice at this level shows evidence of learning that is student directed, where students assume responsibility for their learning by making substantial, developmentally appropriate contributions throughout the instructional process. Ongoing, reflective teaching is demonstrated through the highest level of expertise and commitment related to all students' learning, challenging professional growth, and collaborative leadership.

FOCUS COMPONENT SCORE (State Rubrics)

- ____ C1. Centering instruction on high expectations for student achievement.
- ____ C2. Demonstrating effective teaching practices.
- ____ C3. Recognizing individual student learning needs and developing strategies to address those needs.
- ____ C4. Providing clear and intentional focus on subject matter content and curriculum.
- ____ C5. Fostering and managing a safe, positive learning environment.
- ____ C6. Using multiple student data elements to modify instruction and improve student learning.
- ____ C7. Communicating and collaboration with parents and the school community.
- ____ C8. Exhibiting collaborative and collegial practices focused on improving instructional practice and student learning.

____ TOTAL SCORE

- a) 1 point — Unsatisfactory
- b) 2 points — Basic
- c) 3 points — Proficient
- d) 4 points — Distinguished

The preponderance of the focused component evidence for this teacher demonstrates a level _____.

STUDENT GROWTH: FOCUSED (State Rubrics)

_____ C3. Recognizing individual student learning needs and developing strategies to address those needs.

_____ C6. Using multiple student data elements to modify instruction and improve student learning.

_____ C8. Exhibiting collaborative and collegial practices focused on improving instructional practice and student learning.

_____ TOTAL SCORE

a) 0 – 4 — Low

b) 5 – 6 — Average

c) 7 – 8 — High

The preponderance of Student Growth evidence for this teacher demonstrates a level _____.

Strengths of the Teacher's Practice

Areas for Growth in the Teacher's Practice

We have conducted a conversation on the above items.

Teacher's signature: _____

Date: _____

Administrator's signature: _____

Date: _____

14.7 – Insert Summative Evaluation for Counselor

15. GRIEVANCE PROCEDURES

15.1 Purpose

The purpose of the following grievance policy shall be to provide for the orderly and/or expeditious adjustment of building level concerns and grievances within the Onalaska School District.

15.2 Definitions

A. "Grievance" shall mean a specific complaint by an Employee or group of Employees or the Onalaska Education Association regarding an alleged misinterpretation or misapplication of a term of this agreement or violation of state or federal law.

B. "Grievant" shall mean an Association member or the Association itself.

Revised: 06/15/06

C. "Days" shall mean Employee work days when school is open and shall mean week days when school is not in session for winter, spring or summer breaks.

D. "Administrator" means the superintendent, building principals, or any other person acting in the capacity of a supervisor on behalf of the district.

E. "Forms" shall mean a formal written grievance. Each "form" shall include the following: It shall be headed as a Grievance and clearly include the information as to step number and either "initial", "appeal", or "response" as listed in the steps under grievance procedure; name of the "Grievant", date completed, school of "grievant". "Administrator" name, name of association school representative, statement of "grievance", and relief sought, specific sections of the contract or law that have been violated, or decision of "administrator" and reasons for the decision, and such other information as listed in sections labeled as steps in the grievance procedure.

15.3 Individual Rights

A. A grievant may be represented at all stages of the grievance procedure by himself/herself, and/or by an Association representative selected by the Association. Regardless of the decision of the grievant regarding representation, the Association shall have the right to have a representative present at all formal stages of the grievance procedure. The grievant shall decide whether an Association representative is present at an initial, informal meeting of the grievant with the administrator, as set forth in Step One.

B. Grievances dealing with alleged violation of Association rights may be filed without a meeting.

15.4 Procedures

A. Association members may elect use of the following procedure whenever they believe an alleged misinterpretation or misapplication of a term of this agreement or state or federal law has aggrieved them, a group of them, or the Association as a whole. The grievance must be filed within 20 days of occurrence or of knowledge of an occurrence (or at such time as the Association member should reasonably have had knowledge of such occurrence), whichever occurs first. Grievances should be processed as rapidly as possible.

Revised: 06/15/06

B. The number of days indicated at each step will be considered maximum and the Association and the District shall make all reasonable efforts to expedite the process. Failure on the part of the District at any step of this procedure to communicate a decision on a grievance within a specific time limit shall permit the Association to lodge an appeal at the next step of this procedure within five "days" of the expiration of the time limit allowed for the "administrator" to issue a response. Any grievance not advanced by the grievant from one step to the next within the time limits of that step shall be deemed resolved by the answer provided to the grievant.

C. Time limits provided in this procedure may be extended by mutual consent when signed by both parties.

D. **Step One:** The grievant shall meet and discuss a possible grievance first with the building administrator. If

the grievance involves the building administrator proceed to step three (3). The grievant shall state that this is step one of the grievance procedure. Every reasonable effort shall be made to resolve the matter at this level in an informal manner.

Revised: 06/20/2016

E. **Step Two:** If the matter cannot be resolved at step one, the “grievant” may within five “days” formalize the alleged grievance in writing on a “form” labeled *Step Two Grievance* and submit it to the “administrator.” Within five “days” the “administrator” must respond on a form labeled *Step Two Decision*. The decision must include the reasons on which the “administrator” based his/her decision.

F. **Step Three:** If the grievance is not resolved to the satisfaction of the “grievant” at Step Two, the “grievant” may within five working “days” of receiving the decision (or within five “days” of the expiration of the time limit for the “administrator” to respond), refer the grievance to the Superintendent or his/her designee. The appeal should be labeled *Step Three Appeal to the Superintendent*. It should include the statement of grievance, relief sought and reasons the “grievant” believes the decision rendered in Step Two is not accurate and is being appealed. The Superintendent shall within three “days” arrange for an appeal meeting with the “grievant” and an Association representative. Any party to the grievance may call witnesses. Upon conclusion of the appeal meeting, the Superintendent will have three days to render a decision. The decision shall be labeled *Step Three Decision* and shall include the reasons on which the Superintendent based his/her decision. In the event the Step Two grievance was answered by the Superintendent, the “grievant” would skip Step Three and go directly to Step Four.

Revised: 06/15/06

G. **Step Four:** If the grievance is not resolved to the satisfaction of the “grievant” at Step Three, the “grievant” may within five working “days” of receiving the decision (or within five “days” of the expiration of the time limit for the Superintendent to respond), refer the grievance to the Onalaska District Board of Directors (henceforth referred to as the Board) by delivery of a form marked *Step Four Appeal to the Board* to the district office and by mailing to the Board Chairman. The form shall include the statement of grievance, relief sought, reasons the “grievant” believes the decision rendered in Step Three is not accurate and is being appealed, and whether the “grievant” wants the meeting with the Board to be open or closed to the public. The Board shall have 15 “days” following receipt of the appeal at the district office to meet with the “grievant” and Association representative. Witnesses may be included. The Board will have three days to render a decision. The decision shall be labeled *Step Four Decision*. The decision shall include the reasons on which the Board based its decision.

H. **Step Five:** If the grievance is not resolved to the satisfaction of the “grievant” and the Association at Step Four, the “grievant” and Association may submit the grievance to an impartial arbitrator by giving the Board written notice of its intention to arbitrate within ten working “days” of receiving the decision (or within ten “days” of the expiration of the time limit for the Board to respond). Within three “days” of delivery of notice of intent to submit the issue to arbitration, the Association may submit the matter to arbitration. The arbitrator shall be selected from a list submitted by the American Arbitration Association (or successor associations) in accord with its rules. If the Association and District cannot agree on an arbitrator within five “days”, the arbitrator shall be selected by the American Arbitration Association (or successor associations). The rules of the American Arbitration Association (or successor associations) shall govern the arbitration proceeding. Neither the District nor the Association will be permitted to assert in such arbitration proceeding any evidence or to rely on any evidence not previously disclosed to the other party. One representative for each party shall present its position to the arbitrator provided that the “grievant” shall have the right to be present at the arbitration proceeding. All written correspondence, including all “forms” submitted by both parties shall also be made available to the arbitrator. Each party may, but are not required to, present the arbitrator with a brief written statement of the facts, issues and arguments in support of his/her positions. The decision of the arbitrator shall be final and binding upon both parties.

Revised: 06/15/06

I. The arbitrator’s deliberation will be limited to the statement of grievance and proposed resolution. Further, the arbitrator will be without power to make a decision that requires commission of an act prohibited by law or which is outside the scope of this agreement. If any question arises as to arbitrability, such question will first be ruled on by the arbitrator selected to hear the dispute.

Revised: 06/15/06

J. There shall be no information or records of an Employee’s grievance kept in the personnel file for the “grievant.”

K. Notwithstanding the expiration of this agreement, any claim or grievance arising hereunder may be processed through the grievance procedure until resolution.

Revised: 06/19/06

15.5 Arbitration Costs

Each party shall bear its own cost of arbitration except that the party or parties that do not prevail in the arbitrator's ruling shall pay the fees and charges of the arbitrator.

15.6 Jurisdiction of Arbitrator

A. The arbitrator shall be without power or authority to add to, subtract from or alter any of the terms of this agreement.

B. The arbitrator shall be without power or authority to make any decision that requires the commission of an act prohibited by law.

Revised: 06/15/06

C. The arbitrator shall have no power or authority to rule on any of the following:

(1). The termination of services of or failure to re-employ any provisional Employee.

(2). The termination of services or failure to re-employ any Employee to a position on the supplemental salary.

(3). Any matter involving Employee evaluation, provided the evaluation procedure shall be subject to the arbitrator's reviews.

(4). Any matter involving Employee probation procedures, discharge, non-renewal, adverse effect or reduction in force.

15.7 Personnel Files

There shall be no information or records kept in the personnel file of an Employee's grievance.

15.8 Continuity of Grievance

Notwithstanding the expiration of this agreement, any claim or grievance arising hereunder may be processed through the grievance procedure until resolution.

16. DURATION OF AGREEMENT

16.1 Duration Provisions

- A. The agreement shall be effective as of the date of ratification and shall continue in effect until the thirty-first day of August 2025. Salary and benefits sections will be open each year by mutual agreement.
- B. All provisions shall continue in effect until a successor agreement is negotiated and ratified.
- C. Negotiations between the parties on a successor agreement shall begin at least sixty days prior to the contract expiration date.

17. Approvals

17.1 Signatures of Association, District Officers and Negotiators

Education Association

By: _____

President

By: _____

Secretary

By: _____

Chairperson Negotiating Committee

By: _____

Negotiating Committee Member

By: _____

Negotiating Committee Member

By: _____

Negotiating Committee Member

Board of Education

By: _____

Chairperson

By: _____

Secretary

By: _____

Member

By: _____

Member

By: _____

Member

By: _____

Member

Dated this _____ day of _____, 2022